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Virginia Board of Education, Business Meeting, Thursday, July 25, 2024

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- Official meeting video (VDOE, YouTube): https://www.youtube.com/watch?v=RYM20PgIygM
- Board of Education meetings, agendas and minutes (VDOE): https://www.doe.virginia.gov/state-board-data-funding/virginia-board-of-education

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Speech-to-text: whisper.cpp, model large-v3-turbo. Produced 2026-10-23. Each paragraph starts with its time [HH:MM:SS] in the meeting video.

[00:16:47] It's 9 a.m., 9.01 a.m., and I will call this meeting to order as customary for this board. We will begin with a moment of silence followed by the Pledge of Allegiance, but first I'd like to just note that I've approved the remote participation of Mr. Hansen under the board's bylaws and 2.2-3708.3v3 of the Code of Virginia because his principal residence is more than 60 miles from the meeting location.

[00:17:13] Let us proceed to our moment of silence, please.

[00:17:16] Okay. Is there a motion to approve the agenda as presented? Okay. Ms. Kilgore? Aye. Dr. Northern? Aye. Dr. Brace? Aye. Ms. Ashton? Aye. Ms. Holton? Mr. Hanson? Aye. And chair votes aye. Okay.

[00:18:24] Um, staff has provided the members of the board with the draft minutes before the meeting. Is there a motion to approve the minutes as presented to the board? So moved. Say it. Okay. Mr. Hanson. Aye. Ms. Kilgore. Aye. Dr. Northern. Aye. Dr. Bryce. Aye. Ms. Ashton. Aye. Ms. Holton. And chair votes aye. Um, so, uh, this morning we have a wonderful presentation that's going to take place. Um, Mr. Barrett.

[00:18:57] did I say that right? Yes, wonderful. Is the director of the Atlee High School Chorus in Hanover. He will be accompanying two students this morning, Michaela Cannon and Claire Martin. They will be performing Let Me Be Your Star by Smash and For Good from Wicked. So let us listen to these

[00:19:19] wonderful performers with a hugger for fame and a face and a name to remember

[00:19:41] the past well because as of this day norma jean's gone she's moving on her small fantasy

[00:20:01] it's the sound of her heart saying let me be your soul flashback to a girl with a song in her heart as she's waiting to start the adventure.

[00:20:40] The fate that make dreams come alive, they fail her soul, she's under the drofter.

[00:20:57] The tears, just like pearls, whether all these girls' magic will be making them be your star.

[00:21:16] I'll just have to forget the hurt that came before, forget what used to be, the things it's on, what kind of thoughts she'll be seeing, with it all in her sights, all the love and the light that surround her.

[00:21:53] Some day she'll think twice of the dues and the prize. She'll have to pay. She'll do today. She'll do. She'll do.

[00:22:14] that people come into our lives for a reason bringing something we must learn and we are there

[00:23:17] to those who help us most to grow if we let them and we help them in return Well, I don't know if I believe that's true, but I know I'm who I am today because I knew you like a comet as it passes aside.

[00:23:50] like a street boulder halfway through the world who can see if i've been changed for the better

[00:24:06] But because I knew you, I have been chill for good, well may be that we will never meet again in every lifetime.

[00:24:33] So let me say before we part, so much of me is made of what I attribute, you'll be with me. Like a handprint on my heart, and no way our stories end.

[00:24:55] I know you have rewritten life by being my first. Like a ship of this ring, by a wind of the sea. Like a sea dart with a skybird in a distant world.

[00:25:16] I can see if I've been changed for the better, but because I knew you, because I knew you, I have been changed for good.

[00:25:39] And just to clear the if, I ask forgiveness for the things I've done you blame me for. But then I guess we know there's a seamless share And none of it seems to matter any more

[00:25:57] I do believe I have been changed for the better

[00:26:27] If we could go outside and take a picture with these ladies.

[00:27:19] That would be wonderful. Please hold everybody back. Good, good, good.

[00:29:51] So before we begin today, I wanted to review a few critical facts on Virginia Board of Education appointments and introduced to the public. our incredible two new Board of Education members. Pursuant to Code Section 22.1-9, the Board of Education shall consist of nine members appointed by the governor. Of the nine members, at least five shall reside in different superintendents' regions, five of eight. There

[00:30:23] were misconceptions on social media that members hold seats or particular members were replaced. Two members board terms expired and two new leaders with expertise and perspectives that are

needed to meet the challenges of our youth and public schools that our youth and public schools are facing and that the board can benefit from have been appointed by the governor.

[00:30:51] Every appointment to the board shall be a term of four years. I want to give proper introductions to our two newest board members appointed by the governor. Our first new board member is currently with family, taking care of her precious new grand babies, and will be joining us for her first meeting in August.

[00:31:12] The Board of Education appointee, Ida Outlaw McPherson, is a brilliant attorney at law in the Hampton Roads region. Ms. McPherson joins the board representing Superintendent Region 2 on a region previously not represented recently on the board.

[00:31:28] She earned her Juris Doctor at Howard University School of Law and earned her Bachelor of Arts at Park College in Missouri. Ms. McPherson is the former president of the NAACP Suffolk Chapter and 2021 recipient of the ICON Award, former president of the Virginia Association of Black Women Attorneys and Old Dominion Bar Association.

[00:31:54] Her private practice of law has included a concentration in education, along with contracts, civil litigation, and business, among others, and she has litigated in both general district and circuit courts. She has provided legal services to local community organizations, churches, and educational organizations.

[00:32:15] Ms. McPherson also has extensive government experience serving as contract regional grants administrator and compliance officer for the state of Maryland and was appointed by Governor Bob McDonald to serve as the director of Virginia's Department of Minority Business Enterprise, known now as the Department of Small Business and Supplier Diversity.

[00:32:37] Ms. McPherson was also previously appointed as the chairman and member of the Virginia Manufactured Housing Board by two governors. Her accolades go on. I am thrilled to have Ms. McPherson as a new Board of Education appointee, and she will bring a critical lens from Hampton Roads, her immense experience from years of community work, engaging with families, navigating education law matters, and can help us stay focused on ensuring every child has access to a high-quality education in Virginia and is ready for life. For those of you who tuned in yesterday, we briefly

[00:33:17] introduced Dr. Bryce. So let's cover some additional facts about Dr. Bryce. She herself earned a PhD and master's in cognitive psychology from one of the world's most internationally renowned public institutions of higher education, the University of Virginia. She has also received a bachelor's degree from Amherst College. Dr. Bryce has extensive teaching and research experience and currently serves as a capstone mentor for the University of Virginia. Given the Commonwealth's youth mental health crisis, focus on cell phone free education, fentanyl awareness, and the

[00:33:56] lingering social and emotional impacts on our early childhood and K-12 students from the extending school closures and pandemic actions taken. Having an expert in psychology on the board with teaching experience is a great addition for navigating the most critical issues facing our public schools and youth today. She joins the Board of Education as a resident of Charlottesville and will proudly be representing Superintendent Region 5. Dr. Bryce grew up in Virginia and went public schools K through 12 and for higher education. Dr. Bryce is a staunch advocate for

[00:34:36] accountability and high academic standards, supporting educators, providing transparency with local communities, and most importantly, listening to parents. She is going to be a phenomenal addition to the board and a champion for students. Before I close, I feel I must say that I was very disappointed to see the press headlines and social media posts diminishing Dr. Bryce's qualifications, referring to her as merely the daughter of a public figure, and anyone who has ever achieved for themselves the things that they have achieved in their life

[00:35:12] would never want to have those accolades that she achieved herself diminished by that. I hope moving forward, the media will stick to the facts presented here today. I'm so excited by the opportunities ahead for the board and for Virginia's public school students. With that, I would like to ask Dr. Bryce if she would like to make any comments. Thank you, President Creasy, and I want to thank the governor for this appointment. I have so admired the work that this board has already done to increase accountability and transparency and excellence in Virginia schools. Those are things

[00:35:52] that I've already fought for, and it is my honor and privilege and just a joy to be a part of those efforts going forward. Thank you. Thank you. So we'll move to the public comment section of the board's agenda. As stated in the board's bylaws, it's the pleasure of the board to accept public comment on all matters related to public education in Virginia. Before we begin public comment today, I want to share a few comments about the manner in which public comment will be conducted.

[00:36:22] I ask that you model professionalism, dignity, and respect for others as you share your thoughts today. As adults, it's important that we model respectful civil public discourse for our students and the children of the Commonwealth who are either in attendance or maybe watching online.

[00:36:39] When you begin, please provide your name, role, or affiliation where you live in Virginia. All remarks must be directed to the chair, not at any other individual. Speakers will have three minutes. And as you can see on our screens, you have three minutes to begin your remarks.

[00:36:56] At one minute, you'll see the screen turn yellow and the screen will turn red when your time is up. At that point, please close your remarks promptly. Joe is up here in the front, Mr. Joe Crook, who is the department's regulatory and board coordinator. Please give any written remarks to Joe and he will distribute them to the board.

[00:37:18] You may also email a list of your public comments to, let's see, what is it, boe.doe.virginia.gov. And with that, I will begin our list of public speakers who have signed up, beginning with Scott Braebrand, followed by Dr. Candace Lucas.

[00:37:41] Good morning, President Creasy, Dr. Coons, members of the Board of Education, and welcome, Dr. Bryce. My name is Scott Braebrand. I'm Executive Director for VAS, and I live in Lynchburg, Virginia. As you vote today to approve this final performance and support framework, we offer the following final feedback.

[00:38:01] We appreciate Dr. Coons and this board's ongoing commitment to collaboration with VAS. We appreciate your belief in transparency and high expectations, the decoupling of accreditation from accountability, and the focus on durable skills embedded in the high school readiness 3E framework.

[00:38:18] The 3E framework may need some additional flexibility to help some of our smaller school divisions. We also deeply appreciate a delay in incorporating the performance task at elementary and middle school. We'd like to continue to partner with you as you develop these tasks.

[00:38:33] We also appreciate you limiting advanced coursework to math for middle school readiness and for including the applied studies diploma and the six-year extended graduation rate, while also retaining GCI under high school readiness. As we've shared with you before, we remain concerned about the on-track, off-track summative categories.

[00:38:53] With your partial data modeling complete, we can now see this new framework suggests that 61% of our schools are either off track or need intensive support. VAS strongly believes that all Virginia schools can continue to improve, but we simply don't believe the majority of our Virginia schools are in these two categories. Before you take your final vote, ask yourself how this new framework aligns with the state that just received a number one ranking for business from CNBC that included within its methodology a number one ranking for its education system, including K-12.

[00:39:29] VAS recommends you take the time to perform additional data modeling that will more fairly represent the Commonwealth schools. Take a moment, too, to deeply explore which specific indicators are proving more challenging for school districts to accomplish. Like a good math teacher would say, show your work.

[00:39:44] The current data modeling is not comprehensive enough to fully understand the proposed framework. need to see the specific data breakdowns by category. We remain concerned about the EL semester guidance going from 11 semesters to three semesters. Additional state resources are needed for school divisions as you're identifying these additional 35,000 EL students in need of state support. We also see in the ESSA state plan that the minimum end number for student group identification will go from 30 to 15 kids. This reduction will also increase the number of

[00:40:19] schools and students in need of support we also are glad to see growth in the mastery index of performance and achievement but explaining that concept of expected growth will be essential a lot of good work has been done there's still more work to do before you approve this new framework and then before it's ready for implementation as always bass looks forward to continuing to partner with you on this important work have a great day good morning board members my name is dr candace Lucas, and I'm an advocate on behalf of families with disabilities and children of color. I guess

[00:40:59] if I sing, I'll get more time, won't I? But I'll stick to my three minutes. I wanted to address the issue that, once again, I've always come to you addressing, and that is the fact that special education in Virginia is in a crisis. And despite what Senator Kane may say, those that come before the board and raise these issues are not like the January 6th rioters. We are the ones who are the ones who are keeping you accountable and holding you accountable and making sure that the voices of our children are heard. I really thought it was inappropriate for this chair to take the time to defend a board member when she should be defending children with disabilities and the fact that our

[00:41:35] children with disabilities are not receiving the services that they require. In addition, there is no sense of urgency regarding the crisis and the fact that thousands and thousands of children are suffering daily. In addition to that, I want to document that in the folders I gave you, It outlines all of the violations for the Commonwealth of Virginia as it pertains to the federal government that have not been resolved yet, including independent evaluation rights.

[00:41:59] A majority of these violations have to do with the fact that IDEA is a civil rights law. When you violate a civil rights law, it is a hate crime. There is a hate crime culture in this Commonwealth, and you are doing nothing about it.

[00:42:15] Under Virginia Code 22.1-16, the Board of Education is responsible for overseeing all funding through Every Student Succeeds Act. That includes Title I, Title II, Title III, Title IV, Title VI, Title IX. If you review every single school division in this Commonwealth, you will see that those funds are being misappropriated.

[00:42:37] Most of them, specifically in Chesterfield, Henrico, and other districts, Fairfax, are being used to pay predatory law firms. Those monies are being transferred via line items from our children under the guides of school improvement. How does a predatory law firm like Sam's Anderson or Blankenship and Keith improve academic outcomes? If you can tell me that, I'll give you $1,000. The bottom line is that the Board of Education has done very little to support our children. The governor has done very little to support our parents' rights. We have parents who are raped of their rights

[00:43:14] every single day fighting for the lives of their children. And you sit here and you defend a board member and don't defend our children? How inappropriate, especially when one of the school divisions is the one you reside in that is violating Black children and children with disabilities rights. And you should be outraged over that. So I'd love to see you make a speech about that. In addition to that, I'm going to state this. School divisions in Virginia are illegally outsourcing special education to predatory law firms, and you are doing nothing about it. It's a violation of procurement. Deal with it and shut it down. Thank you.

[00:43:53] Rania Lateef, followed by J.T. Kessler, please. Good morning, Madam President, Creasy, and honorable members of the Virginia Board of Education. My name is Rania Lateef, and I'm very excited to be here today. I'm a rising senior at Colgan High School in Manassas, Virginia, and president of a student-led organization called Match Up, standing for Maternal and Child Health Upliftment and Progress.

[00:44:23] We are a coalition of student leaders who want to improve maternal and child health outcomes locally and globally. One of our chief aims is to enhance the lives of children with disabilities. According to the Centers for Disease Control, about one in six children suffers from a developmental disability.

[00:44:38] Early identification and interventions to meet their physical and mental health needs is key to improving the quality of life in such children. One such initiative is Unified Sports, where students with and without disabilities play on the same team. My leadership team at Matchup has been a staunch advocate and supporter of Unified Sports in Prince William County, and we are proud to say that my high school offered Unified PE as an elective for the first time last year.

[00:45:04] However, this elective is not offered at every school. Also, most 11th and 12th graders do not have room in their schedule or free electives to take this course. So last spring, we started communicating with the Board of Education and most recently with the Virginia Department of Education staff.

[00:45:21] We shared our vision to construct an option where students taking unified PE in 9th and 10th grade could use it to satisfy their health and PE requirements. This would immediately expand the number of students who sign up to take these courses and therefore would expand the opportunity for students with disabilities to work with their typically developing peers.

[00:45:39] We are so grateful to Dr. Michelle Wallace and her team for patiently walking us through various regulations that govern the Virginia standards of learning. My team and I had to learn a lot and we had to learn it quickly. We are honored that we heard back from board member Ann Holton who listened to our ideas and encouraged us.

[00:45:58] Governor Glenn Youngkin's Right Help Right Now plan shows a strong commitment to supporting individuals with special needs. It aims for Virginia's behavioral health and developmental disability systems, emphasizing the importance of immediate effective supports and community integration.

[00:46:14] We believe that allowing unified PE to count towards graduation requirements aligns with Governor Youngkin's commitment by promoting inclusion and community awareness and enhancing workforce readiness. I understand that this is a big ask, and we are seeking for a change in well-intentioned and well-established curricula, but our education has led us to believe that this change is necessary and it is the right thing to do. Thank you.

[00:46:41] J.T. Kessler, followed by Wesley Wallace. Good morning, President Creasy. Welcome, Dr. Bryce, to the board. Members of the Board of Education, Dr. Koons, my name is J.T. Kessler, and I'm here on behalf of the Virginia School Boards Association. I reside in Charlottesville.

[00:47:03] For the past year, the board has considered changes to Virginia's accountability and accreditation system. VSBA appreciates the work of the department and the board as this process has evolved and for the outreach to our association to provide feedback from our members.

[00:47:19] Since the initial stages of review of the performance system by the board, VSBA has expressed the need for accountability for student outcomes and for the transparency of the outcomes to the public. VSBA has held steadfast on our belief in the importance of student growth to be weighed heavier in the overall framework used to measure our schools.

[00:47:39] As the board moves forward with the new performance system, VSBA reiterates our concerns that the low percentage of weighting of student growth in these models will not accurately reflect the work our students, teachers, support staff, and administrators are doing each day lacking full transparency of a student's true academic performance.

[00:48:00] We are worried these models will reward schools and communities with resources while punishing communities in challenging environments. In the next school year, Virginia's public schools will have the heavy lift of implementing provisions of the Virginia Literacy Act, new curriculum standards, while navigating the new performance framework from this board.

[00:48:19] We know this will be challenging, but believe our educators are up to the task. We believe flexibility will be needed along the way and look forward to working with the board and department in the months to come. In conclusion, I would like to echo the words of VSBA's president, Cardell Petillo, who recently thanked our Commonwealth School Board members and educators for the hard work during challenging times.

[00:48:41] Their decisions to their dedication to public education played a significant role in CNBC's rating of Virginia as the number one state to do business. VSBA remains committed to advancing public education in the Commonwealth and will continue to advocate for policies that lead to the best outcomes for all Virginia students.

[00:49:02] thank you and have a wonderful day. Wesley Wallace followed by Shelly Norton, Wesley Wallace, Shelly Norton followed by Jeans Sokolowski. Good morning President Creasy, Dr. Coons and distinguished members of the board. My name is Shelly Norton and I'm a director with the School Board

Member Alliance. I'm here this morning to sincerely thank you for the hard work that this board is doing to return both rigor and accountability to Virginia Public Schools.

[00:49:41] As a product of the Virginia public school system and a 22-year veteran teacher, I had a front row seat to the lowering of expectations that accompanied equity in 2017. During that same year, previous members of this board voted to prioritize growth over mastery. This enabled a student who received a 30 on a growth assessment test and several months later received a 31 to count as showing growth in accreditation calculations. In just five years, the previous board's decision to prioritize growth over mastery resulted in some of the lowest test scores

[00:50:17] Virginia students have received in more than 26 years. Yet, every public school remains accredited and our high schools continue to graduate students in record numbers. The numbers have not added up for the past seven years and I want to thank this board for not only exposing where our system has failed our students but for also coming up with a solution with this new accreditation framework.

[00:50:39] the role of public education is to educate students and prioritizing proficiency and mastery is the first step to ensuring all students graduate with the knowledge they need to succeed at the next level i also support decreasing the time frame to include english language learners results in accreditation calculations from 11 semesters to three as a former high school english teacher i have seen the frustration of ell students many of whom have a second or third grade english comprehensive comprehension level being placed in a high school English class without any support.

[00:51:13] These students lose confidence and often just give up. By reducing the window to three semesters, school divisions will have to prioritize these students and provide them with the support and resources they need to ensure that they are no longer left behind. Our North Star must be high expectations for every student. I appreciate this board using our nation's toughest benchmarks, as well as the needs of Virginia employers and higher education institutions to raise the bar are proficiency or on proficiency standards in math, history, and English. There is solid evidence

[00:51:46] that proves when expectations increase, academic achievement improves. However, we also know this doesn't happen overnight. When this new accreditation framework is implemented, there will be hundreds of schools that are off track or need intensive support. Rather than just labeling these schools as failing, this new framework requires a VDOE to provide the support and resources they need to improve. There are many more improvements I could address, but for the sake of this time, I'll end with this. Thank you for your commitment to the framework and the positive changes you are making in our education system. In addition to increasing academic achievement, I honestly believe the new

[00:52:25] framework will inspire many teachers who left to return back to the classroom. Thank you. Thank you. Gene Sokolowski, followed by Dan Zacharias. Members of the board, good morning. I'm Dr. Gene Sokoloski. I am the father and grandfather of Virginia Public Schools, and I live in Woodbridge.

[00:52:52] I wish to address two matters that I've submitted to the board previously. The first is the Advisory Committee's discriminatory standard in the Standards of Learning in 2023 History and Social Science Standards of Learning. The second is the Advisory Committee's falsification of two of the four victim groups of genocide in the 2015 Standards of Learning. The discriminatory standard is WHII9 together with its subordinate standard WHII9E. It is discriminatory because it suppresses the historical fact of Hitler's genocide of Poles in Romani and only presents Hitler's genocide of

[00:53:27] European Jews, half of whom were Polish Jews. The absurdity of this discriminatory standard is as follows. 2.8 million Polish Jews died at the hands of the Germans, as did 2.4 million Poles. All were innocent civilians, and all were Polish citizens. The standard honors the genocide deaths of 2.8 million Polish citizens, but suppresses and dishonors the genocide deaths of 2.4 million Polish citizens. The Polish people view these 5.2 million deaths as a double genocide and a

[00:54:03] permanent part of Poland's national history. The discriminatory standard is easily resolved by adding the new subordinate standard, which is WHII 9G. I presented that to you in the comments that I submitted on the form. Regarding the advisory committee's falsification of two of the four victim groups of genocide, I presented the empirical evidence of this in my comment form submission. The board has the responsibility to have this misconduct investigated and corrective

[00:54:36] action taken. The state has a legitimate interest in ensuring the integrity of the historical record that it presents to Virginia students and their teachers. This misconduct violates that, I'm sorry, this misconduct violates that state interest and further violates the public trust of Virginia citizens.

[00:54:58] I respectfully request your evaluation of my two appeals and further request your reply as to your acceptance or non-acceptance. If it is the latter case, I respectfully request the justification for your decision.

[00:55:15] I also wish to point out that I have four sets of the correspondence with attachments that I have sent to the board requesting resolution of the discriminatory standard and investigation of the falsified standard. I am leaving that correspondence with the gentleman here.

[00:55:31] This concludes my comment, and I would be happy to answer any questions that you have. Questions? Dan Zacharias, followed by Kakeem Fung.

[00:55:51] Excuse me, Madam President and members of the board, good morning. My name is Dan Zacharias. I have the privilege of being the director of the Old Dominion Association of Church Schools. And some comments are being distributed to you. I'm not going to read those.

[00:56:07] I'll summarize them. They relate to two bills that were considered by the General Assembly this last session, House Bill 222 and Senate Bill 76, which ODACS supported.

[00:56:22] And the paper that you are receiving gives our rationale for our support to those bills. The bills were in response to what we viewed as some pretty significant Department of Ed overreach that occurred in 2023 at some of our preschools. And what they would have done, the bills did not pass, but had they passed, they would have put our religiously exempt church-run preschools and daycares on the same legal and regulatory footing as our other church-run children's ministries, such as Sunday school, church nurseries, Bible school, and especially

[00:56:59] our K-12 schools. So what I want to draw your attention to this morning is particularly the issue of safety. Opponents of the bills claimed that children would be less safe if the bills were to pass, and we argue that just the opposite is true. Data collected by the Department of Social Services demonstrates that a founded case of child abuse is five times less likely to occur in a religious-exempt setting than it is in a licensed setting. Now, I'm not trying to

[00:57:37] characterize licensed centers as unsafe because these are rare in both settings, but statistically, a religious-exempt center is safer than a licensed center. Recently, the Department of Ed began collecting

data on serious physical injuries, so it's kind of early to make broad statements, but so far in a recent 12-month period, there were 11 times more serious physical injuries in licensed centers than in religious exempt centers, and when scaled for

[00:58:12] capacity, it made it three times less likely to occur in a religious exempt setting. So we believe our children are very safe in religious exempt settings, and I simply challenge you this morning to examine that data. We'll not explore the question of why that might be true this morning, but I would hope that that would cross your mind in the future as well. Thank you for your time and for allowing me to address you. Kakeem Fung followed by Emily Webb, please. Good morning.

[00:58:49] My name is Kakeem Fung and I'm an educator and living in Chesterfield, Virginia. I wanted to say it is a great idea in the 3E framework for enrollment to award 1.25 points for the associate degree. I think it'll also be also another good idea to also recognize in the instances where a student might be able to earn a bachelor's degree during high school as well.

[00:59:16] After all, if a student earns a bachelor's degree, it should be awarded the same amount of points, if not more. But I think at least earning the same amount of an associate degree would recognize students who may have earned a bachelor's degree but not an associate degree.

[00:59:34] In addition to that, I would like to also like to say when deciding and finalizing the enrollment part of the 3E model for points, I would also like to ask to you guys consider the DSST exams for college credit as some R1 research institutions like ODU and VCU accept those for college credit as well and they're also working nationwide um that's basically it thank you good morning madam

[01:00:14] president members of the board and dr coons i'm emily webb vice president of education and workforce development at the virginia chamber of commerce i'm pleased to be with you this morning to offer comments on the proposed school performance and support framework i'd like to start my comments today by recognizing virginia's recent number one ranking by cmbc as the best state for business as part of that recognition virginia is also ranked number one in education we have a tremendous education system here in the commonwealth and the chamber looks forward to building on those successes with you in the future as outlined in blueprint virginia 2030 the chamber strategic plan

[01:00:52] for the commonwealth we support early state intervention and improvement strategies including additional financial and human resources to assist struggling schools and students to ensure improved accountability outcomes and opportunities for all. The Chamber believes that school accountability standards should set clear expectations, appropriately measure student progress and actual growth, and drive continuous improvement. We are pleased to see the continued emphasis on college, military, and workforce readiness through the Ready for Life indicator

[01:01:26] and the 3E readiness framework. We would request that the Board consider including and incentivizing work-based learning in this indicator it has been well documented the positive impact that hands-on work-based learning has on students especially in career exploration and preparation and in developing durable skills we believe it's incredibly important for workforce readiness to connect classroom instruction to experiential learning as the board considers adding additional assessments for growth and accountability we would encourage the board to streamline the number of statewide assessments to ensure a balanced approach. A balanced assessment system

[01:02:05] should meaningfully track achievement and measure actual student growth. We appreciate the board undertaking this work and the engagement with you and Secretary Gadara over the past few months. We look forward to continuing to work with you to ensure that Virginia is not only the best state for business, but also the best state for talent. Thank you. Arthur, that was the only name that was listed on the followed by Dr. James Fetterman. I don't think we have Arthur. So Dr. Fetterman,

[01:02:43] you're up. Good morning, members of the board. My name is Dr. James Fetterman. I am the proud president of the Virginia Education Association. And I'm here today to address you about the SOA plan. This plan is misleading to parents and public. This proposed system's overwhelming emphasis on raw pass rates and minimizing of growth measures will mislead the public and parents for identifying quality schools. This will reflect student demographics and student privilege rather than school quality, defined as the capacity of a school to improve a student's

[01:03:16] learning and comprehension. The focus on pass rates will mislead parents to make suboptimal decisions. It would be easy for a parent to look at performance framework and select a school with a high overall distinguished score where their child would predictably grow less than if they were enrolled in a neighboring school in a lower performance category with higher student growth rates. Far from helping parents and the public identify schools that are doing a good job growing student performance, this performance framework takes us backwards, negating the usefulness

[01:03:50] of the results for stakeholders. This is rushed and not ready. This system is not ready. Virginia does not have federal approval for this new accountability system yet. There is no time for schools to respond to the new measures like scaling up advanced courses offering for math in middle school. Budgets are set in schools, particularly those with high share of Black students, already struggle to fill any middle school math teacher positions. The fact that we don't even have the readiness assessment for fifth and eighth grade and we'll have to shift around the weights of a variable to make up for this over the next two years will confuse administrators,

[01:04:30] teachers and parents. This is far from incentivizing consistency and high performance. Fast tracking this plan when we do not have federal approval or all the assessments ready will undermine the public and teachers trust in this new system.

[01:04:45] This is not a system to drive improvement. The new performance framework is not designed to push schools towards excellence. Getting rid of credit for incremental progress is chronic absenteeism, reducing the weight of measures for closing gaps between student groups giving most weight to raw pass rates will incentivize perverse behavior from administrators it is likely this new system will once again push administrators to focus on resources students on the bubble and meeting the verge of passing the sols the new system will encourage less focus on students with disabilities far behind in academic subjects and the students

[01:05:22] who are already classified as chronically absent labeling schools as need intensive support without giving them intensive support is crucial. This new system will support 5% of the schools with additional state guidance from the Office of School Quality. Many more of the lowest rate category need intensive support will receive no additional support. When this board has a chance to recommend additional resources for these high-end need schools through revising the standards of quality, you move to a previous set of recommendations of $2 billion. I guess I'll seeing this last part. If you truly believe in schools and state, we need intensive support.

[01:06:00] Thank you. W.R. Good, followed by Yael Levine. Good morning, President Creasy, Vice President Hanson, board members, Superintendent Coons. My name is W.R. Good. I live in the Shenandoah Valley and I'm just a private citizen. A little bit about my background. I'm a retired United States probation officer and prior to my appointment I was employed in community corrections having over 33 years of public service in Virginia. I volunteered extensively in the local schools

[01:06:37] and also served on the Rockingham County School Board and I continue to volunteer and currently work in a limited capacity assisting James Madison University nursing students and UVA medical students. I'd like to urge the board to fully approve the proposed school performance and support framework. I just want to take a moment to highlight a few areas that I've identified to be important steps forward. The first, the use of the word must, which is contained in guiding principle three. It's clearly a step forward. I'm quoting, the system must prioritize getting

[01:07:14] every student to proficiency slash mastery. Not a should, not a shell, but a must. The hundred point weighted index is easy to understand and reduces confusion. The lowered exclusion period for english learners will now conform with federal law and more importantly provide for the inclusion of thousands of students who were simply ignored under the old accreditation system under the ready for life high school framework it appears to be well planned simple to grasp and covers all the

[01:07:52] bases and i was very pleased to learn that students will be offered the u.s citizenship test with schools receiving bonus points for students who pass the test now in the future just as as a suggestion the board may wish to formulate some type of bonus for the students who actually desire to exercise this important testing option and i just have one additional thought when i was coming in this morning um i i can think of no better venue to hold a meeting

[01:08:25] concerning education than at a library and and your work is very important i'd like to thank your for your service to the commonwealth. Thank you. Levine followed by Daniel Black. Is the IL here?

[01:08:46] I don't think she is. Daniel Black followed by only Farrah. I don't have a last name. Madam President, members of the board, I'm Daniel Black from Rockingham County and I've been fortunate to have worn many hats in and out of the classroom as an agriculture education teacher, after school program advisor, CDL driver, and father. I want to commend the board for capturing innovative transportation solutions in the proposed revisions to the school bus specifications guidance document. I would like to start by highlighting that Rockingham County is in a

[01:09:22] critical shortage of bus drivers where we only had 14 qualified drivers for the 26 recruited positions in 2022 and 2023. The bus driver shortage has continued to grow since the pandemic. My students were directly impacted by that. If I wanted to take my students outside the classroom to learn through a field trip or other school activity, there were often no drivers or buses unavailable. With that, I took it upon myself to get my commercial driver's license so that my students would not miss out on an opportunity for experiential learning due to the lack of qualified driver. This disparity can be addressed if we expand transportation options that are

[01:09:58] smaller and thus do not require full CDL status. This would ensure our students in rural areas, overcrowded urban areas, foster care, those experiencing homelessness, and those students that are participating in activities after school do not miss out on opportunities to help shape young, impressionable students into confident, engaged, and civic-minded members of society.

[01:10:21] Additional transportation options will also help educators work to combat chronic absenteeism, as a lack of reliable transportation puts some students at an automatic disadvantage, particularly children in rural areas, children of working families, and children of low-income families. We cannot afford for transit barriers to be the reason our students are not in school learning. Whether it be field trips, after-school activities, or simply getting to school, Expanding transportation options will ensure that no child gets left behind, and our school divisions can be innovative in providing safe and reliable transportation for our children.

[01:10:57] I also want to say I appreciate the work you've done, the work the department's done on Executive Order 33. Thank you. Farrah, no last name, followed by Jason Kamras. No Farrah, so Jason, you're up.

[01:11:25] Good morning, Madam President, members of the board and Superintendent Kins. my name is Jason Kamras. I am the superintendent of Richmond Public Schools. I live here in Richmond, and I am the father of two Virginia public school students. I normally sit on your side of the dais, and I know how challenging it can be over there, so let me begin by thanking you for your service to the Commonwealth and its students. To start, I'd like to publicly thank Dr. Koons for celebrating the first day of school with RPS at Woodville Elementary on Monday. As you

[01:12:02] all likely know, RPS has four schools that started on July 22nd. They will continue uninterrupted through the end of the traditional school year. We call this program RPS 200 because the kids are in school for 200 days. We've seen enormous progress, and again, we're incredibly grateful for your support. I want to raise three concerns today related to the accountability system that the board is considering. Before I do so, I want to make it abundantly clear that I've spent my entire life in public education supporting accountability and high expectations. Anyone who

[01:12:36] knows me knows that is true. My first concern is that the proposed system does not appear to prioritize subgroup performance. As best as I can tell, and I am happy to be corrected, the system only focuses on overall mastery, growth, and readiness. Though our current system is complicated and difficult to understand, one of its strengths is that it requires schools and school systems to demonstrate success with their subgroups. I fear that the proposed system will return us to a pre-NCLB world where overall success can hide poor subgroup performance.

[01:13:13] My second concern is with the on-track, off-track nomenclature. Just about a mile from here is Fairfield Court Elementary School, one of our RPS 200 schools. Last year, this school, which is 97% economically disadvantaged grew by more than 20 percentage points in early literacy. However, its overall proficiency would likely make it off track at best. This belies common sense.

[01:13:39] Finally, my third concern is about support. At the end of the day, an accountability system is really just a sorting tool. What I really care about is what we do to support the schools that need the most. I have yet to see from this body a comprehensive plan to put more dollars where they're most needed. Achieving proficiency at Fairfield Court is exponentially more challenging than it is in higher income parts of the state. It's also 100% possible if we maintain high expectations and provide the supports that students and teachers need. I beg of this body

[01:14:16] to endorse the JLARC's recommendations about increased investment in our schools as a companion to your work on the new accountability system. Thank you for your time and consideration and your service to the commonwealth thank you pastor valerie collie followed by holy followed by um

olivia malin good morning board thank you for this opportunity um i don't come here with speeches i come here with live experience i am for the charter schools i really believe because i work in those

[01:14:55] inner city communities and i see the disparities of the communities that i serve i'm here on behalf for the betterment of all people but i service those people who are desperately in need to this day i have done since january 11 african-american males eulogy we know one of the issues is an uneducated man whether black white purple or greed is definitely prone to higher violence incarceration drug abuse i'm also a mental health profession and i would just ask this board to

[01:15:33] consider. Identifying other methods, alternative schooling. I shared years ago with Lisa Bennett, I was one of her protégés, and I shared with her years ago that we need to start looking because I do work hand in hand with these individuals in the communities. I also talked to Jason about that.

[01:15:55] What we need to start doing is looking at alternative charter schools. A lot of our Some of them are academically inclined, but that's a low percentage. So let's look at those who we could draw the attention towards vocational, career-oriented programs, you know, maybe carpentry, having those type of charter schools in place as well.

[01:16:20] We have to change. You know, they say we don't need to reinvent the wheel. But when you look every decade, the wheel is being upgraded. Okay. We started out with the wooden wheels. Now we have, then we had the donut wheels, you know, with the big white rim. Now we have the dubs, as the children say. And so we do need to upgrade the wheels.

[01:16:42] And I really, really believe because I'm the voice for the parents who don't understand, who don't have a voice or they don't even they haven't identified that they do have a voice. So I'm the voice for them. And I would just really ask that the board consider some other alternative measures so that we can educate so that we can start wanting everyone to be successful.

[01:17:05] Let me leave you with this. I used to go my program used to go into the juvenile detention on Oliver Hill. At a 16-year-old young man, after our session, he came to me and he said this. He said, Pastor, I want to know how to do better.

[01:17:21] And I want to read the Bible to know to do better. He said these words to me. He said, but I cannot read. I asked this young man. I said, which grade are you in? He said, I'm in the ninth grade. My question to the board is this. How do our children at 16 years old and ninth grade don't know how to read?

[01:17:42] Thank you for your opportunity. Olivia Moline, followed by Carter Moline.

[01:18:07] Thank you. My name is Carter Moline. My wife and I have raised our daughter, Olivia Moline, in Norfolk, Virginia. From 2008 on, she was documented as having autism and had a series of individualized education program documents, which are now known nationally as the IEP.

[01:18:28] Things got weird in 2016 when my daughter started going to a series of other committees that were not the iep to explain this mess i want to share a few tidbits of information first in 1955 the supreme court of the united states ordered the implementation of brown versus board decision which mandated desegregation of children by race sex and religion two months later the united states passed the mental health study act which includes segregated emotionally disturbed children. Now, I think that when Governor Douglas Wilder signed the Virginia

[01:19:06] Comprehensive Services Act into law in 1993, that it was functioning from day one as a segregation law for children generally considered as emotionally disturbed and therefore not protected by the decision of Brown v. Board. Now, this is a very, very, very serious legal problem for all children with autism, because the Comprehensive Services Act could not ever produce an IEP, and there is no due process to move a child with an IEP to the Comprehensive Services Act

[01:19:39] or any other later version of the law. Now, I am providing with you a copy of a relevant case, which is AK versus the Alexandria City School Board. It first went through the U.S. District Court, Alexandria Division, and then through the U.S. Court of Appeals Fourth Circuit in Richmond, Virginia. I think all attorneys in this case got it wrong. I think AK was in the Virginia Comprehensive Services Act as enacted by Governor Wilder. If I am right, the external committees in

[01:20:17] the Virginia Comprehensive Services Act would cause the IEP to dysfunction, meaning that the problem was not in the public school division. Thank you for your time, and I would greatly appreciate your feedback. And since you happened to give me 35 more seconds, my daughter did want to come give comment, but she told me last night and this morning that she's been here and you didn't do anything. This is what's been going on for eight years. I've gone to every freaking special ed attorney I've gone to that I can find in the country, and they all don't understand the

[01:20:54] problem. This state has two different administrations for autistic children. Two administrations. When you start saying an IEP can control someone else's money and someone else's administration, that's just BS. Thank you. Jenna Alexander followed by Brett Bassey. Good morning, President Creasy, members of the board, Superintendent Koons. My name is Jenna Alexander.

[01:21:31] I'm the president of the Virginia PTA and a parent of Loudoun County Public School students. Today, I'm here with you to again share our opposition to the introduction of new performance tests for fifth grade and eighth grade, as well as our opposition to the entire readiness category for elementary and middle school.

[01:21:47] While we appreciate that you've deferred introduction of these new tests for one year, we urge you to remove them completely from the framework and simply use chronic absenteeism as a readiness indicator at 5% or the lowest federally allowable minimum. Virginia PTA has a long history of supporting comprehensive assessment systems that include multiple measures of student growth and achievement.

[01:22:07] However, these new tests are not based on SOL standards, are not federally required, and are not designed to guide new instruction. Additionally, blending performance task test results with chronic absenteeism in the readiness indicator does not provide parents with test result transparency, and changing the indicator from this year to next year does not allow comparisons.

[01:22:26] If you want to expand testing of the 5Cs, there's ample opportunity to do so within the existing three end-of-year 5th grade SOL tests, as well as the 5 SOL tests taken by your 8th graders that cover all academic curriculum. With respect to the advanced coursework, the current standards of learning don't allow students to take advanced-level social studies courses or science courses, and access to advanced math courses is often restricted due to the lack of availability of licensed teachers and funding.

[01:22:53] We therefore ask you to expand access and accountability by re-evaluating the alignment of math standards. With respect to the four summative categories, we appreciate the time and research put

into developing a framework that clearly differentiates performance from accreditation, but it needs some work.

[01:23:11] Despite overwhelming public feedback and opposition to a numerical ABC type of a system, that is unfortunately what was released to the public five days ago. The distinguished category at 90 plus points is clearly the A category, while on track at 80 to 89% points is clearly B, and off track at 65 to 79 points is clearly a C or D indicator.

[01:23:32] We urge you to reevaluate the categories to provide parents with meaningful information about the support that their school needs and should be receiving. Right now, the federal framework identifies 250 schools, but those schools aren't clearly defined in any of the categories, despite the stated goal of creating a cohesive state and federally aligned system.

[01:23:51] Additionally, the bucket off track with more than 50% of Virginia schools is so large that it fails to provide critical information for parents about which student subgroups are struggling versus the schools that are underperforming across all grade levels and those that are struggling from year to year.

[01:24:06] We urge you to reevaluate the performance categories and directly align them with the three tiers of the Virginia Department of Education support system, because that type of support-driven identification drives funding, instructional guidance, and the type of family and community engagement that you need to truly lift up achievement.

[01:24:24] Thank you very much.

[01:24:37] Members of the board, thank you for your service. I know this is a challenging topic, but I'm Brett Vassian, the CEO of the Virginia Manufacturers Association. We represent the 6,900 factories, 230,000 workers in the Commonwealth that make world-class products.

[01:24:56] Many things that you probably are wearing or driving or you see around you today. We see the performance and support framework as part of what we call continuous improvement. Continuous improvement is part of any institutional or individual excellence.

[01:25:13] It's not a destination. It's part of a journey. And we thank you for your progress. Bridging the gap between Virginia's K-12 educational system and workforce development is critical to the manufacturing sector and its competitiveness. Specifically, increasing and expanding work-ready and industry-recognized credentials in the Virginia educational system will strengthen our emerging workforce, your students, and pave the way for Virginians to get hired in well-paying jobs and create the economy of the future.

[01:25:43] I'm going to highlight three things specifically we think that you can pay attention to within this process. the performance and support network number one schools and superintendents should be measured on the number of industry recognized credentials their students earn not just how many kids go to four-year institutions you can start with a very easy process only cte kids are required to have the work readiness skills assessment why not all children it's a very simple approach number two the academic and career plan plan for the commonwealth for rising seventh graders is a failure. It has to be restructured. It has to be reapplied. We think it should be an e-commerce

[01:26:22] based passport that follows them their whole life, gives an opportunity for parents, teachers, students at all junctures in their decision making to be part of academic and career planning in a way

that's dynamic and relevant to how students learn today. And let me give you one example. We will never meet our engineering requirement, our engineers or our plants, unless students are properly advised that they have to take eighth grade algebra.

[01:26:50] The math is this. If you don't take eighth grade algebra, you can't take calculus by your 12th year. You'll never qualify for engineering school. We don't have enough engineers, simple math. Third issue for us is comprehensive consumer-facing data and dashboard and academic and career planning, as we said before, but really going into career exploration and career pathways.

[01:27:13] have undefined career pathways. It is still college or bust in schools, let's admit that. We need more opportunities for young people to choose those paths. We are committed, and I'll give you one more example. We only have 11 percent of our workforce is female in our production occupations. We have to close that gap by 2027 to 2030. The only way we do that is career exploration at the very youngest years so kids understand they're not tracked into certain occupations and choices thank you for the opportunity to address you good luck with your work if there

[01:27:49] are other commenters that would like to speak this morning we would ask that you please line up behind the podium again i'd like to remind you to ensure that you provide us with your name and affiliation if you have one and then additionally any comments that you have in written form should be handed to

[01:28:10] mr joe crook please good morning board welcome new members um i'm kathy halverson from powhatan virginia i'm here in reference to my son once again for alexander halverson he's been out of

[01:28:45] school since november 17th of 2021 we have been through due processes after due processes nothing, still nothing's been done. Dr. Lisa Coons, you sent a letter to Powhatan stating exactly what they needed to do. However, that's the first letter that they needed to comply or you were going to take it further. You stated, I went to federal court. I get an affidavit from

[01:29:24] you, Dr. Coons, that states, you had no prior knowledge of my son's situation. And let me just, on June 29th, you had a meeting with me for 40 minutes. My son loved it. He was accepted.

[01:29:52] This is a private, right? Right. Mind you, on the attendance record, it had home base. So you had a meeting with me for 40 minutes, Lisa Coons. You write to the federal court judge an affidavit that stated you had no prior knowledge. 40 minutes, I spoke about my son from kindergarten all the way up to the fifth grade, but you had no prior knowledge. Wrong, wrong, wrong.

[01:30:23] I am tired of my son being crucified. Tired. You knew when I met with you, Samantha Hollins sent a letter also to Powhatan demanding to do something. The board, I am asking you, 22.1-214, letter E, that you instill a contract and keep the funding, what Lisa Kuhn stated she was going to do for my son.

[01:30:52] Number letter F, the board needs to supervise educational program. That is not happening. July the 7th, Samantha Hollins gets a letter from Beth Teagan stating the only reason they filed the CHINS against my husband and I was to get the judge to get me to sign a CSA consent.

[01:31:18] Sounds familiar from two people before me. The next, which is really disgusting, I gave you 27 pages of budget line transfers. The first three is to 61310, which is special education improvement of funds.

[01:31:40] That money is to Dr. Thank you, Ms. Halverson. I'm sorry. Your time is expired. Thank you. Okay. Well, that amount goes to the attorneys. Thank you. Do something, please. Thank you.

[01:32:05] Good morning. Good morning. My name is T.C. Pinkney Epps. I'm here as the Community Engagement Director with the Virginia Education Opportunity Alliance. I also want to remind you that like the last time I was here, I'm a former school board member with the Richmond Public School System. I don't envy your position. I do not envy your position at all. As I've sat out here listening today, It just reminded me of everything that I heard as a board member representing children in this city.

[01:32:48] And forgive me for digressing for just a moment because, folks, this stuff is personal. It's personal when we think if we're keeping the main thing about the main thing, the children, whatever we are going to do, we have to consider that it impacts children.

[01:33:04] So first, let me thank you for revitalizing the charter school committee, because folks, we need options. We need more options. It's time out for the adults fussing with the adults on the backs of the children.

[01:33:24] The VEA comes and tell you what they don't want. We got superintendents telling you what they don't want. And no one, not many, are listening to the parents. And it's their fundamental right. We talk about public schools being underfunded. And so that incessant fight happens. And then the teachers got to go run. They got to get unions. And the children continue to be victimized by a system that is not working because adults that know

[01:34:01] better won't do better. So let's move forward with these charter school options. Let's move with more options. Time out for the dog and pony, about a little bit of progress, because we got whole children. We need whole children to progress. We need whole children to progress. Since 2004, I have been asking that all we do is consider we need additional resources and options for our

[01:34:33] children. It's not about money. It's about people who care. It's about people who care and, in fact, get handsomely paid thank you hello good morning i'm a member of virginia education my name is arazelli i'm come from library institute i'm here to support extremely the application process to

[01:35:08] start a charter school as latin community is really hard for us to apply for those schools and around me there are many people that have children that have necessities to apply for that school and they don't even know the education that they have and i would like that it's going to be faster for us to apply for those education because every children has the every child needs a high quality education and i think as a community latin latin people we also need to

[01:35:45] have a good education for our children thank you good morning members of the board and superintendent Coons. My name is Todd Truitt, and I'm here today from Arlington, Virginia, as a parent of two Virginia public school students. I strongly endorse the middle school accelerated coursework readiness factor, as well as the new accountability system in general. This readiness factor will bring much-needed public transparency to the important civil rights issue of algebra by eighth

[01:36:19] grade. This is data that's not currently easily obtainable, but with potential lifelong consequences of many kids. As discussed in detail at the June BBOE work session, Florida has a similar readiness factor they've had in place for over 10 years that's working very well there. But at yesterday's work session, there was a short discussion about the chief academic officer at Stafford, a former top VDOE official, having sent a letter at the 11th hour raising issues with how the middle school math acceleration

factor would work. One thing to note is that when this person was high up at the VDOE, he helped lead the Virginia Math Pathways Initiative, which initially

[01:36:59] proposed that no kids should take algebra in middle school, there should be no math honors math classes, and all kids should be in the same math class until 11th grade, all of which copied San Francisco's inequitable algebra for none program. As for his alleged claim that a letter about a denominator being zero, the denominator issue was discussed in detail at the June work session, you just look at eighth graders who the previous year passed a math SOL exam or higher, plus any seventh graders who take algebra in seventh grade. That's it. This all raises a broader point. There will always be some people who want to continue to keep Virginia families

[01:37:36] and communities in the dark as to whether schools are deciding to decelerate some middle schoolers who are ready for algebra instead into a lower math class, which has potential lifelong consequences. These types of decisions need to be made in broad daylight, subject to public accountability.

[01:37:55] Thankfully, we're very close here in Virginia to finally living up to our responsibility under ESSA to students, parents, and communities of honest disclosure of academic data, as Barack Obama proudly discussed was its purpose when signing ESSA in 2015.

[01:38:12] Tons of work has gone into this new system, and this board has had numerous meetings on this topic over many months with numerous opportunities for public comment, as well as video listening sessions, a virtual public hearing, and the regulatory town hall, among many other things. And there's a regulatory process to flush out the very fine details. The time has come to bring this process to a close. Let's get it done for Virginia students, parents, and communities.

[01:38:39] Thank you. Good morning. I'm Tammy C from PowTan. So good morning, all. Welcome new members. Hopefully you're just what Virginia might need to make it better, but I'm not very hopeful.

[01:38:58] But one can wish, right? That's how our special needs kids feel in Virginia. They're like just thrown to the side, given what little they can get, you know. So Lisa, I've reached out to you quite a few times in an email.

[01:39:20] One, because Sands Anderson, you know, shared my son's medical information. They breached it. And also, too, about how instead of giving him part-time English and math just to brush up on it, they wanted to put him at 20 years old in ninth grade with 14-year-old girls.

[01:39:48] How would that go over well with y'all? Would y'all like it if y'all's 14-year-old daughter was in class with my 20-year-old son? I think not. So y'all need to really address Paltan, you know, and, you know, get Superintendent Beth Tegan, you know, to follow laws and rules.

[01:40:11] Also, so they spent over $50,000 in legal fees to fight a whopping $1,500. That's right. They fought paying Sam Sanderson because we foiled the information instead of just paying $1,500 to Pem Foster for him to go to get his diploma, not a GED.

[01:40:39] So, and also, the Pledge of Allegiance says justice for all. So, yes, that even does mean special needs kids. And let's see here. Sorry about that. So, what are y'all going to do?

[01:40:59] like nothing but sit back and watch and y'all are involved with this corrupt law firm as well. I mean, and then I FOIA'd documents, communications. I wanted all communications from PowTan to y'all

just to see. Now, I thought y'all's FOIA department might be, they might need some special education services themselves. I mean, who sends redacted black documents. I mean, obviously, if I'm going to pay y'all, which y'all sent me a bill, but I ain't

[01:41:32] going to pay it because who wants black documents? I want the real communication because what y'all do is y'all try to hide under a rock and not be exposed. Thank you so much. Is there anyone else who's here to speak during public comment today before we move out of this section of the agenda?

[01:41:57] Okay. I will close. Oh, I'm sorry. Go ahead. Okay. I will close the public comment section now, and we will move on to our consent agenda. Item A and item B, as the board can see, are on the consent agenda. Is there a motion to, is there a motion on the items on the consent agenda?

[01:42:19] So moved. Okay. That being said, let's move to the vote. Ms. Kilgore, can we approve the vote to approve the consent agenda? Ms. Kilgore? Aye. Dr. Northern? Aye. Dr. Bryce? Ms. Ashton? Aye. Ms. Holton? And chair votes aye. Okay. Consent agenda is approved and we will move on to item C. Mr. Gilstrap, is he going to come on up? Here you go.

[01:42:57] Good morning, President Creasy, members of the board, Superintendent Kuntz. This morning, I bring to you the final review for the, excuse me, for the Advisory Board of Teacher Education or ABTEL's recommendation to replace Praxis Social Studies Content Knowledge 5081 with Social Studies 5581 with a passing score of 153 for History and Social Sciences endorsements.

[01:43:28] The following information is all in your agenda, and this was also presented to you for first review in the June board meeting. The 5581 Social Studies Assessment will replace the older 5081 Praxis Social Studies Content Knowledge Assessment across the United States.

[01:43:45] The test requires the examinee to understand and apply social studies, knowledge, concepts, methodologies, and skills across the fields of the United States history, world history, government, civics, geography, and economics. The new test requires a greater focus of U.S. history and civics.

[01:44:05] The U.S. history and world history sections include more recent historical events and movement to better match the knowledge expectations for teachers. The civic sections assess more knowledge about active civic participation. Additionally, there is reduced emphasis on behavioral sciences and geography and economics.

[01:44:24] The testing time will be increased from 120 minutes to 150 minutes, a 20-minute increase. One thing I want to make sure that we point out is that the change in this assessment will impact psychology, sociology, and anthropology teachers.

[01:44:43] They will be okay to teach on the old assessment until it expires, but they will need a new assessment because it has been removed from the social studies one. I can answer any questions that you might have. Any questions, Dr. Northern? I'm just wondering if you've had an opportunity to see if, you know, what kind of alignment or lack thereof there is with our new social studies standards and the content here.

[01:45:09] I don't know how much the information they give you. There's lots of information. It's also in the packet. But I also just recently was doing some research from your last question last month on the NAEP test. You'd ask me, why was it not aligned with the NAEP test? Well, part of the answer for that is the NAEP test is aligned for students and this is for teachers.

[01:45:28] but all of the same groups that were aligned for the NAEP are the same ones that are aligned for this assessment as well. And the same people almost in every case as well. So it is very well aligned with NAEP. It just didn't use NAEP as an example because it's a student assessment instead of a teacher assessment. Okay. Just one follow-up question. Yep. Do you know how long this, Has this just been approved, this new cutoff from Praxis?

[01:45:57] Right. It was February when the new assessment had its full vetting, and it'll start as soon as we approve it for us, but it has started in a few other states already. We will have a phase-out period for 5081 through December, and then we will start with only 5581, the new assessment then.

[01:46:15] Okay. Thank you. Other questions? Okay. Is there a motion to approve the recommendation of the Advisory Board on Teacher Education and Licensure? To establish a cut score of 153 for the Praxis Social Studies 5581 test.

[01:46:35] Second. Any discussion? Ms. Kilgore? Aye. Dr. Northern? Aye. Dr. Bryce? Aye. Ms. Ashton? Aye. Ms. Holton? And chair votes aye. Thank you. Thank you, Mr. Gilstrap.

[01:46:51] Item D, Dr. Carroll? Madam President. Yeah, I'm going to get through this one and then we will. You're telling me that this is going to be a problem. Okay.

[01:47:08] We will take a brief five-minute break, please.

[01:57:36] Item D, Dr. Carroll, please proceed. Sure. Good morning, President Creasy, members of the board, and Superintendent Coons, and thank you for having me today. I'm here to present to you item D, the first and final review of standards of accreditation regulations at the final stage.

[01:57:53] As background, this is not a new item for the board. The Board of Education began discussing a revision of Virginia's current accreditation and accountability systems in the summer of 2022 with the goal of bifurcating Virginia's accreditation system from accountability. These discussions focused on bifurcating the current system of accreditation and the school performance framework so that the accreditation system focused on inputs and the school performance framework focused on outputs. At a special meeting in August 2023, the board approved a Notice of Intended Regulatory Action, or NORA, to repeal 8VAC20-131

[01:58:32] and replaced the new chapter to bifurcate accreditation and accountability and revised the school performance framework to increase transparency on school performance. The Department of Education, following key decisions at the September 2023 board meeting, then released the NORA for public comment and engaged in a series of stakeholder listening sessions across the Commonwealth. Between November and December 2023, the superintendent and the board conducted eight regional listening sessions. There was a total of 375 attendees, including legislative members, parents, teachers, principals, and board members, division superintendents, and division directors

[01:59:09] of testing. At the January 2024 board meeting, the board received a summary of the feedback and discussed the language regarding regulatory language for weighting of indicators. Then at the March 2024 board meeting, the board received a proposed draft of regulations of the standards of accreditation. The board reviewed and voted on the proposed draft regulations, leading to the proposed draft being posted for public comment for 60 days on May 6. Over the months of April through July, the board engaged in a series of listening sessions for public comment gathering.

[01:59:42] During April 2024, the board hosted a series of listening sessions again. The in-person listening sessions were in each of Virginia's eight superintendent regions, with 211 attendees that included parents, teachers, principals, school board members, and division superintendents.

[01:59:58] The Department of Education also hosted virtual listening sessions with a number of associations across from Virginia, including the Virginia School Boards Association, the Virginia Middle School Association, the Virginia Association of Elementary School Principals, the Virginia Association of Secondary School Principals, the Virginia Association of School Superintendents, and the Virginia Parent Teacher Association. Over 600 participants attended the virtual sessions.

[02:00:25] Lastly, the department also gathered 170 written comments during this time period. Following this, the VDOE then held an online public hearing on June 4, 2024, for the proposed regulations and gathered written public comment on the Virginia Town Hall. As mentioned, the public comment forum opened on May 6, 2024, and then closed on July 5, 2024, and we had 34 comments. These comments are summarized in Attachment 1 and were presented during yesterday's work session. At this meeting, the board received a final draft of the regulations of the Standards of Accreditation,

[02:01:02] as well as Attachment 1 and 2. The review and vote on the final draft regulations will allow the Virginia Department of Education to finalize the school performance framework under the federal Every Student Succeeds Act. The final regulations will create one performance framework aligned to federal requirements that provides transparent school performance information through performance labels and identify schools for support, create an accreditation system that is aligned to state requirements and is focused on inputs or minimum operating requirements, allow the board to shift the school performance framework in the future by using ranges of weights

[02:01:38] and the ability to add indicators and align actions for divisions in schools to take based on identification to federal requirements. Once approved by the board, the regulations will be published at the final stage in the Virginia Register of Regulations in accordance with the Administrative Process Act before becoming effective. The Superintendent of Public Instruction recommends that the Board of Education approve the standards of accreditation regulations at

[02:02:05] the final stage. Is there an intention to approve the standards of accreditation regulations at the final stage? I'm sorry. I'm sorry. We have to waive first review. Is there a motion to waive first review and approve the standards of accreditation regulations at the final stage? Sorry, I didn't have my lights not on. That's my fault. Let me say that again so everyone can hear. Is there a

[02:02:43] a motion to waive first review and approve the standards of accreditation regulations at the final stage. So moved. Second. Is there any discussion? Ms. Holt. Yes. Thank you, Dr. Carroll and President Creasy. I want to first note my concern about waiving first review on these extremely important. I think I'm close enough. I'll get close. I'd first like to note my objection

[02:03:18] on this and frankly numerous other agenda items today. And this is a continuing objection to deviating from our standard procedure as outlined in our bylaws by approving important matters on first and final review in one meeting. These documents, many of the documents we'll be considering today were posted for the first time to the public on Friday, six days ago. And it's just not it doesn't allow us to get good input before we make important decisions in particular these regulations are some of the most important work we do and I think it's a mistake to do it on

[02:03:58] first and final review and it's not necessary given that nothing can go forward on this until the ESSA plan is approved and that can't be finalized today because it hasn't yet been put out for public comment so first I would I would urge my colleagues to defer any final action on regulations until at least next month. As to the merits, if I can go ahead and share my thoughts on that, as some of the speakers pointed out, Virginia was just recognized by the CNBC system as having not just the best state for business, but in particular, the best education, public

[02:04:33] education system in the nation. Now, I'm not sure I agree with that. I actually think that our public education system has some important challenges, particularly around serving our hardest to serve students who most need the help of a public education system to give them a trampoline to life success. But I do believe that there are a lot of things going right in our public education system and that we are at serious risk of having unintended consequences and

[02:05:06] rolling backwards from the significant achievements and accomplishments of our system if we're not careful about the devil and the details. An accountability system is all about devil and is all about details. Some of the things I'm excited about, I am excited about the math in eighth grade. I don't think it's helpful or constructive to implement it without time for school systems to phase it in, but I do think that it's absolutely right that we need to incentivize algebra in eighth grade. I think it's important to try to align the federal supports

[02:05:41] with the state supports, and I applaud the department on those efforts. But fundamentally, I suggest that the regulations, the proposed regulations are potentially destructive to public education in Virginia and would urge my fellow board members to defer action and improve the product before we finalize anything. You know, the public comment, I would characterize it somewhat differently from what I heard yesterday, but certainly what we heard today, we heard from

[02:06:14] the Virginia PTA representing 175,000 parents in Virginia. We heard from the leadership of our superintendents who most know, I mean, accountability system is most important for how it encourages continuous improvement among our schools. And the superintendents know how the system works currently and what the impact of future changes will be the virginia school board association which represents almost all of our jurisdictions and frankly is mostly comprised of elected officials in our in our counties all across the commonwealth and not known for

[02:06:53] unduly making objections to the work of this board but the virginia education association all of those entities spoke today and raised serious concerns about the path we're heading on. Most importantly, we have heard consistently and continuously from the beginning a strong objection to an A-F grading system, which this is, as the PTA representative said.

[02:07:19] I would call it an ABDF system that's fundamentally not what Virginians want. by calling it category. It's categories, not letters, but the public comment all said don't do categories, and we are doing categories. The system, the regulations misweight growth.

[02:07:39] They fail to fix our underlying growth measures, which is the most important flaw in our current system. We don't have valid, useful growth assessments. The system that's being proposed to measure growth is, well, I'll talk about that more when we get to the ESSA plan because that's not specifically in the regs, but the misweight on growth that's in the regs will incentivize, will not incentivize continuous quality improvement for our schools and will increase the pressure towards economic and racial segregation, one of the biggest problems

[02:08:15] in our public schools. One of the fundamental changes that we haven't talked about that much, but was raised, Dr. Kamraz, Mr. Kamraz raised this morning, is that the new regs remove the incentive for school progress and for attention to subgroups such as children with disabilities that our current system weights heavily. As he pointed out, a school like Fairfield that's gone 20 percentage points up in its system but still not necessarily hitting those marks, The current, the proposed new system doesn't give any weight to movement in the right direction,

[02:08:52] either it doesn't give sufficient growth to individual student accomplishments, but it doesn't give any weight to progress at the school level the way our current system does. And, you know, to label a school like Fairfield off track, I mean, that's, you know, off track is a train, a transportation analogy, right?

[02:09:11] A track means you're going in the right direction. And to say that a school like Fairfield that's made huge progress in the right direction is off track, it's factually inaccurate, it's demoralizing, it's counterproductive. And most importantly, I would put up with all of that if we were actually sending new supports so that Mr. Kamraz and his colleagues could create more Fairfields.

[02:09:41] It takes money to create Fairfields. He has multiple schools that could be using the kinds of resources that he's invested there, but he can't expand that. The state can't expand that throughout without new resources, and there's not a single dime of new resources.

[02:09:58] Dr. Koontz has suggested that there's been money sent back to the feds, which is, that's a terrible tragedy if we've been sending money back to the feds. the amount of money that it represents doesn't come anywhere close to meeting the need. This administration has initially proposed to cut the Office of School Quality and opposed efforts to expand the at-risk add-on. Finally, the General Assembly accepted, but has not shown any sign of interest in funding new supports, and absent that, this system is not factually inaccurate and

[02:10:36] counterproductive i'll save my further concerns for the later agenda item but i encourage the board thank you to vote no today thank you any other discussion before we vote yes please miss ashton thank you can you hear me okay wonderful um where do i begin i think um one the hearing consistently from uh our public comment about virginia being the number one state to do business I think is incredible and it is a foundation for us to build on. And I think the

[02:11:16] brutal facts are that many Virginia scholars are doing very well and we should absolutely celebrate that. Here's where I think we all agree. We all agree that the current accreditation system does not serve all of our students and all of our families well. We all agree that there should be high expectations for all scholars. We all believe that families should have a say and have input in

[02:11:51] terms of the decisions that we are making. And I am going to avert in affirmative support of our accreditation system because it should be the floor in terms of expectations and not the ceiling for what virginia students and families can achieve i want to be a part and i think this board wants to be a part of continuing to make virginia the best and serving all of our students particularly those from the lowest income working class families special education students and

[02:12:28] here's what i heard and i agree we need more transparency we need more communication we need to make sure that the students and families who don't have all the resources receive the resources we all agree that there must be resources for students who are the furthest behind from proficiency and mastery there is no disagreement about that unfortunately our students and families

[02:13:01] do not have time to waste so any delay i think would be would not be for us doing our responsibility as board members we must do something about the data i believe that the standards of accreditation should be seen as a tool, a tool and a resource to give all stakeholders the information that they need in order to make Virginia the best, continue to be the best, and to make sure that more students

[02:13:36] achieve mastery and ultimately achieve their life outcomes. I am incredibly confident in our leaders, our teachers and our families to see this accountability framework as that tool and allow us to uh to direct the resources where they need to be in order for more schools to approve i also believe that there is a lot of misinformation in terms of details and what this framework is and how it operates and i i trust that we can continue to push one another to ask

[02:14:16] clarifying questions but to continue to move this work forward because our students and families cannot wait thank you further discussion okay miss kilgore ah dr northern aye dr bryce i miss ashton i miss holton no and chair votes on uh is um bill not still with us no he's not right

[02:14:47] now item e mr chapman good morning president creasy members of the board superintendent coons um what we have this morning is uh basically our legislative cleanup this is a regular item somewhere between our june and july board meetings um we have a a number of of legislative bills, sorry, a number of bills that have been passed on by the governor that require slight little bits of cleanup to our regulatory catalog. All of these are being presented as exempt actions

[02:15:27] under the exemption that allows for these to bypass executive branch review and bypass a lot of the normal procedure in the regulatory process because they are necessary to conform the regulations with state law. So the summaries have been provided to you in this, and I won't make this more. The key point here is that the board is not exercising discretion. These decisions have already been made with the legislature, and this is just cleanup for our regulations.

[02:15:55] The recommendation of the superintendent is to waive first review and approve these so that we can conform our regulations to Virginia law. So is there a motion to waive first review and approve the regulatory changes included with this item and authorize VDOE to take actions necessary to effectuate the legislative changes? So moved. Second. Any discussion? Ms. Kilgore? Aye. Dr.

[02:16:22] Northern? Aye. Dr. Bryce? Aye. Ms. Ashton? Aye. Ms. Holton? Aye. Chair votes aye. And Mr. Chapman, you are item F2. Yes, thank you so much. This action is also necessary to conform with recent legislative changes. However, it is just above that exemption where the board is not exercising discretion. Essentially what happened in this bill is that it required certain updates to the IEP structure to remain and sorry and in the process we had to define a term called

[02:16:59] short-term objectives. The board is exercising a very small amount of discretion in defining this term and so it is in fact you know non-controversial but we are it is a little bit of discretion. We've discussed this with OAG. We believe that this is the proposal necessary to conform with state law, the recommendation from the superintendent is to waive first review and approve this again so we can conform the regulations to state law. Is there a motion to waive first review and approve the regulatory change included with this item? So moved. Any discussion? Ms.

[02:17:39] Kilgore? Aye. Dr. Northern? Aye. Dr. Bryce? Aye. Ms. Ashton? Aye. Ms. Holton? Aye. And Chair Boats? Aye. All right. Mr. Chapman, item G. And before you begin with item G, I just would like to note for the record that because of my employment, I will be recusing myself from this particular item. Thank you

so much. Yes, this bill is enacting a legislative bill from back in the 2021 Acts of Assembly, which essentially requires that we amend our

[02:18:15] regulations governing private special education day schools and require that as a condition of renewal of its initial license to operate or that it obtained accreditation from an accrediting agency recognized by the Virginia Council for Private Education. So we have, you know, enacted this in the regulatory, in the regulatory chapter in consultation with the Office of the Attorney General. This is a little bit, again, a little bit more than not exercising discretion, but we do expect this to be non-controversial because all of these changes are necessary in order to conform with the legislation. The recommendation from the superintendent is to waive first review and

[02:18:53] approve the regulatory changes to chapter 671. Is there a motion to waive first review and approve the regulatory change included with this item? So moved. Second. Any discussion? Ms. Kilgore? Aye. Dr. Northern? Aye. Dr. Bryce? Ms. Ashton? Aye. Ms. Holton? Aye. And Chair recuses. Thank you.

[02:19:19] item H. Thank you so much. This action is part of our guidance document reduction efforts. You might recall back in January of this year, we presented item to the board to remove a number of guidance documents that we felt either had outlived their purpose, no longer interpreted laws or regulations, or simply just did not meet the definition of a guidance document under state law. What we have here is two additional guidance documents that we are asking for the board permission to remove from the list of guidance documents on town hall that the board certifies as active one of those items actually came before the board for approval in april 2020 in april of

[02:19:56] this year it was revisions to the career and technical education's high quality work-based learning guide and when we went through the process this had sort of been on the peripheries of our initial analysis we went through the process um in the approval from the governor's office of regulatory management before this got posted town hall they actually flagged it as well and said hey we don't think this meets the definition of a guidance document we thought that was very helpful went back and did our own analysis talked with the office of attorney general and reached a consensus that yes we do think that this is outside of the boundaries we want to be clear as with the last item this does not affect the board's approval this is going to be maintained on our website and we've identified the high quality work-based learning page in the item where

[02:20:34] this item will remain up it will still serve our fields this is just really stating that this doesn't meet the technical definition of a guidance document because it's not in fact interpreting a law or a reg or one of the agency's regulations um we also have a second document that we're presenting for the exact same reason um the virginity virginia community school framework this is uh you know a 2019 document but it's really a best practices document as we've discussed with this oag we just don't feel that this rises to the level of meeting the definition of a guidance document where it's interpreting or implementing a statute or one of the agency's rules or

[02:21:11] regulations. This will also be maintained on our Virginia Community School Framework page. We don't think that this does anything to the document proper. Again, it's just stating it doesn't meet the technical definition of a guidance document. We have consulted with Office of Attorney General both of these and the recommendations to wait first review so that we can remove these from our list on town hall. This will affect our regulatory reduction efforts and we'll be able to get rid of, I believe, around 42,000 words from our regulatory catalog.

[02:21:43] So it does have a benefit there as well. Okay. Is there a motion to waive first review and approve this item and remove the guidance documents identified from town hall? So move. Second. Any discussion? Hearing none, Ms. Kilgore?

[02:22:00] I'm sorry. Sorry. I'm sorry. We had a motion made and seconded. Ms. Kilgore? Dr. Northern? Aye. Dr. Bryce? Aye. Ms. Ashton? Aye.

[02:22:16] Carolyn Gallagher: Miss holton I enter votes, I thank you very much, and you have the next item to do, thank you so much what we're asking to do in item H or sorry item I is to finalize a number of the period periodic reviews that the board.

[02:22:32] Carolyn Gallagher: allowed for the department to open back in December of 2023 so that original ask was for 21 chapters, we have the results of 12 of those chapters back. And in this process, what has happened is we've opened these up for a public comment forum on Town Hall, we have done an analysis according to statutory criteria to determine if these chapters are still necessary and relevant.

[02:22:53] Or if there are any amendments that need to be made we've documented these in the Town Hall forms that we've provided for the board. I will summarize that of those 12 chapters that we're presenting for finalization today, the recommendation is to retain seven of those and four of the chapters that we're asking retain.

[02:23:10] We think that there are small amendments that need to be made, which we will bring in separate regulatory actions. So just to emphasize again, this is really just closing out the five, the periodic review process, any separate, you know, requests or amendments to these regulatory chapters will be their own board items at a subsequent board meeting, which we're hoping actually for the September meeting. But we've also found more startling, again, this is out of only 12 chapters, and this is part of what happens when an agency doesn't do periodic reviews for about a 20-year period. Five of those chapters, we think, can be eliminated in some capacity or another,

[02:23:44] either because they're a single chapter that is only a small section, and then we can either move it to another chapter where it makes more sense. We've documented that, or a couple of them have simply outlived their purpose. We've consulted with all of these chapters on the Office of attorney general. The recommendations to remove, again, will be separate regulatory actions that we will bring back to the board in September. But these are really positive results. Again, if we're eliminating five chapters of 12 that are no longer necessary in serving their purpose, we're going to clarify for the public, but also make sure that there's not conflicting regulations on the books that will affect school divisions potentially negatively. The recommendation from

[02:24:23] the superintendent is that the board waive first review and approve the finalization of these periodic reviews and staff will be prepared to bring back any regulatory actions at a subsequent board meeting. So is there a motion to waive first review and approve closing the periodic reviews on the regulatory chapters identified in this item as presented to the board? So move.

[02:24:43] Second. Any discussion on this item? Hearing none, Ms. Kilgore? Aye. Dr. Northern? Aye. Dr. Bryce? Aye. Ms. Ashton? Aye. Ms. Holton? Aye. And chair votes aye. Okay, we are moving on to item jack thank you good morning per the request of the board an additional national expert position to the membership of the virginia advisory committee for advanced learning was approved in june a solicitation for nominations was posted on the videoe website through our educational

[02:25:22] update in july we received three nominations and those were reviewed by our staff the individual that's been selected is nicolas colangelo he's done extensive work on counseling needs of gifted students as well as research of the benefits of acceleration and is currently the dean and director emeritus at the university of iowa college of education he's worked with virginia colleagues from the university of virginia and the college of william and mary the superintendent of public instruction recommends that the board wave first review and approve the recommended

[02:25:57] nominee to fill the vacancy on the VACAL. Is there a motion to waive first review and approve the recommended nominee to fill the vacancy on VACAL? So move. Second. Any discussion on this item? Hearing none, Ms. Kilgore? Aye. Dr. Northern? Aye. Dr. Bryce? Aye. Ms. Ashton? Aye.

[02:26:23] Ms. Holton? Aye. And chair votes aye. Thank you. And as we have Ms. McDaniel come up, I'd like to introduce you all to Ms. Sophia McDaniel, as this is her first time presenting to the Board of Education. She serves as Senior Innovation Policy Analyst in the Virginia Department of Education and is our lead on public charter schools within the department. I'd like to take a moment to remind the board that it's been over eight years since the Board of Education last reviewed and approved any changes to the public charter school application, evaluation metrics,

[02:27:01] and process. I am grateful for staff's time studying best practices and evaluating ways to streamline and enhance our process and materials for the board, for applicants, and for local governing boards when reviewing public charter schools in the Commonwealth. Unlike other states, Virginia's Board of Education is responsible for reviewing, commenting, and determining whether a public charter school satisfies the criteria that is developed by the board. A decision by the public charter school standing committee and the board of education that a public charter school

[02:27:38] application satisfies the board's criteria, however, does not ensure a local governing board will approve and authorize a public charter school. The board's charter school standing committee met last Tuesday, July the 16th, to review and discuss the items that Ms. McDaniel is about to present to us and they made a unanimous motion to support the board adopting these amended materials. It's important to remind the public and the board that our charter school standing committee has five national and local charter experts with technical expertise and is

[02:28:15] chaired by our very own fellow board member Mache Ashton who is also a public charter school leader in Washington, D.C. Each member of the CSSC will review each application and provide comments and provided the opportunity to engage with each application applicant and learn more about their application and ask questions in the public at the Charter School Standing Committee meetings to further evaluate whether they satisfy the board's criteria. All applicants will receive

[02:28:50] written comments by the CSSC, including strengths and suggestions for improving their full proposal following the CSSC meeting. Our ultimate goal is to enhance the evaluation process and ensure the highest quality charter schools go before their local governing boards for approval and subsequent authorization. Ms. McDaniel, here you go. Thank you, Madam President. Good morning, Madam President, esteemed members of our Board of Education, and Superintendent Koons.

[02:29:23] Once again, I'm Sophia McDaniel, and I'm the lead on public charter schools for the department. In your agenda and materials today are the Charter School Standing Committee materials. You will see attachment one, the evaluation metric rubric, attachment two, the application process, and attachment three, the application itself.

[02:29:41] You will see there is a staff recommendation page, the prior document, and the proposed document. Virginia currently has seven public charter schools, all of which were approved by their local governing boards between 2002 and 2015.

[02:29:58] The last charter school model to open was in 2016 in Loudoun County Public Schools. There have been three gubernatorial administrations, multiple state superintendents, and multiple governing boards since the Commonwealth last utilized the charter school standing committee, and since the Board of Education last reviewed the charter school evaluation criteria, the charter school application process, and the charter school application itself.

[02:30:25] Moreover, there has been a rapidly changing technological landscape with more efficient and transparent ways to operate and learn from other states on best practices. These proposed revisions to the public charter school evaluation criteria rubric, the public charter school application process, and the public charter school application itself encapsulate these changes in technology, including removing references to fax machines.

[02:30:48] better align and reflect what is outlined in the Code of Virginia, account for an additional eight years of lessons learned when it comes to reviewing, commenting, and supporting new charter school applicants, as well as using committees of technical experts like our own with charter school expertise, and reflect best practices from state authorizers operating high quality charter school portfolios on what they look for in the evaluation process. These proposed revisions to the public charter school evaluation criteria rubric the public charter school application process and the application itself were reviewed by the charter school standing

[02:31:25] committee on july 16 2024 and were and were recommended to the board of education vdoe the superintendent of public instruction and the board's charter school standing committee recommends that the board of education approve on first and final review the 2024 proposed public charter school application criteria evaluation metric did the 2024 proposed application process and the 2024 proposed application thank you miss ashton as the chair of the public charter school standing committee is there anything that you would like to add before we take questions and

[02:32:03] discussion no i just want to thank sophia um and just the committee came together it is a really awesome local national experts and i think this is a good jump start and improving our process and excited for the work to that comes next thank you any questions by the board miss holton uh thank you ms mcdaniel and thank you ms ashton for your in the committee's work on this um i think i heard yesterday we certainly heard a couple of folks in public comment this morning uh suggesting that we may have some potential new applications it's my understanding we haven't had an application come

[02:32:40] filed with the board for many many years so are am i right there's some new interest yes we've received applications but we decided at the department we wanted to make sure that we updated these processes to reflect best practices those lessons learned to be modernized and we know that applicants are going to be moving forward with these new processes but we just wanted to level set before we went through that so how many new applications do we have pending currently we have three applications great we'll look forward to hearing more about them once the committee's done their work with respect to these new i applaud the committee and the department for

[02:33:15] working to upgrade the process i do see you're asking us to approve these on first and final review today they were only posted and shared with the public a few days ago has the department done

any work to vet these new changes with to share these changes and gather feedback from our stakeholder groups i think particularly important here would be the vsba because only local school boards can actually authorize charters as we as the president creasy said so we want this process to be as helpful to them as possible so that the applicants will have the best chance of succeeding

[02:33:52] with them so has this been vetted with the stakeholder groups at all yet miss mcdaniel i'll take the first part of this these these documents actually have been on the department's website in preparation for the july 16th meeting so it was not just posted on friday yeah on the On the Charter Committee's website, perhaps?

[02:34:12] Well, the Charter Committee's page and the Town Hall Notice, all of those things submitted all the documentation that you're referring to. So, yes, being on our board agenda, but these documents have been for public consumption since prior to, I believe it was what, the 11th maybe that they were posted on the VDOE website.

[02:34:35] a few weeks, but my only point would be, and I guess the next question to Ms. McDaniel would be, if you can answer the first question, and also, is there any need to rush on this, noting my continuing concern about first and final review, is there some reason why we can't wait till August? So I've got two questions. Have you vetted it, and can we wait till August?

[02:34:57] Ask the first question one more time. Ms. Ashton? Sorry. Go ahead. has have the documents been uh shared for feedback with our stakeholder groups including the vsba vass etc got it can i can i take the first part of that um if you will remember miss holton um i reconstituted that committee back in march at our board meeting and so stakeholder groups have known since then that we would be beginning working on this um and so my opinion is is if they chose to engage on that they may have reached out to us on that particular item

[02:35:36] um and so that being said i would then defer to miss ashton well and i i think that is right it is absolutely available for public review we will continue to be open to feedback uh it has i was notified that i was chair of this in march which i think is the the official timeline around when um additional feedback and input would be would have been welcomed we continue to welcome feedback uh the second is i think the members of the committee represent local charter leaders i

[02:36:11] mean they are the ones who are living the work and so incorporating their feedback in term specifically what we're only focused on is the timeline the actual application and the process And so I would, again, as chair say, we'll continue to be open to feedback.

[02:36:31] I think we have sufficiently provided notice and we'll continue to be welcoming additional feedback. - Did you have a second question? - Well, I still haven't heard whether we've done any outreach to the stakeholder groups to gather their feedback.

[02:36:46] - So just echoing those comments, it was open for public comment before, prior to our charter school standing committee meeting. - So nothing other than that. And then my next question is, is there a reason why this can't go through the normal process of, as set out in our bylaws, of first approval, first review this meeting and final review next meeting?

[02:37:10] Yes, because we have three applications that are in waiting. Well, I would, I would, it is in our, it is within our purview to waive first review.

[02:37:27] So if I would, I would ask if you don't support it, then that's okay. but I think there has been a we are going to make a motion for first review and the committee is ready to review to go through the process and then really bring back the recommendation to the board which will allow us to continue the work what I heard from just to to echo what I heard from public comments and what I've consistently heard from superintendents and teachers is that we need more innovative options I think we did tremendous work on the lab schools to

[02:38:02] bring partnerships uh to to schools and so in my mind it is as urgent to begin this process so that we can continue to see more innovation within virginia schools so if i may just but miss dr northern has a comment or a question so just to give some additional context here um i've been on a charter school board my organization actually authorizes charter schools in another state and this application is so high quality and strenuous like honestly when i look through it and

[02:38:42] if we all look through it we've come a long way in terms of the charter quality issue and what we expect charters to be able to demonstrate when you look at this man we're asking about um you know their plan their five-year projection their fundraising their founder their we need their resumes we need their community need they have to have solicited community output before even coming together with an application like nationally this is exactly the types of things that we look for when we're trying to figure out whether a team is actually ready to open a charter school and they

[02:39:17] have their act together so if anything this this application probably asks for more than other states do just because the the burden is is on that team to really prove that they have their act together we've asked about their instructional plan which is big right we've asked about their finances like how are you going to make it happen so anyway my point is that this is a top quality application and it reflects many of the things personally that we as an authorizer in another state have learned over the years that you need to ask because a lot of these components that are in this application actually predict whether a charter school be successful so i'll just say

[02:39:55] That the one thing that I would suggest, as we you know complete these reviews is that we always give like specific page numbers i've been on both sides of this. These are all this should all be publicly available, so we want to put if they don't meet a particular criteria to the page reference the page in the application, where it was not.

[02:40:16] That criteria was not met cut and paste the exact language that they used Okay, because we want to show that this was a very objective. process so in terms of just how the reviewers do their work i would just urge us to make some more discrete um instructions there for how they are to render feedback thank you further comments any other board members before i return to miss holton miss holton yeah just by way of uh comment and then a request to you um president creasy well i'll do the request first if you could have us

[02:40:52] vote separately on waiving first review and then on the merits. I would appreciate that because I do oppose first review, but I have no reason. As far as I can tell, the committee's done great work. I would love to have us have the normal process as set out on our bylaws, allow us to have input from the public and then finalize next month. So I would like an opportunity to vote against waiving first review, even if my colleagues don't agree with me, then I'd be prepared to vote in support of the changes, which as far as I can tell look great and I appreciate all the work

[02:41:29] and I'm totally supportive of the committee's work to promote innovation. So I'm happy for you to offer a motion in that regard and see if there's a second. Then I'll make a motion that we accept the item on first review and defer final action until next month sounds like that fails for lack of a second so at this point we will move to my request for is there a motion

[02:42:07] to waive first review and approve the 2024 proposed public charter school application criteria evaluation metric the 2024 proposed application process and the 2024 proposed application as presented in this item. So moved. Second. Any discussion? Okay. Hearing none. Ms.

[02:42:30] Kilgore? Aye. Dr. Northern? Aye. Dr. Bryce? Aye. Ms. Ashton? Aye. Ms. Holton? Aye, but noting my objection to the first review. Ms. Creasy votes yes. Okay. All right. Thank you so much, Ms. McDaniel.

[02:42:47] Success on your first time. Let's see. Is Dr. Williams doing this or are you doing this? Thank you. I'll be subbing in for Dr. Williams on this item. What we have here is a representation of this item, which is the Board of Education's approved industry certifications, occupational competency assessments, and professional licenses.

[02:43:15] Every year, we do a regular update in April, between the April and June board meetings, just to make sure that we are up to date on all our credentials. So in April of this year, the board approved adding 17 new credentials and removing, I believe, like 63 or so credentials from this list.

[02:43:34] We had one credential that was a little bit of a straggler. We're still going through the process. And so we have recently, though, determined that this actually meets the criteria, the U.S. Entrepreneurship Certification or Marketing. And so we are presenting this again. This document has already been through the town hall process for the April changes.

[02:43:51] So it is active and effective. And so all we're doing is adding this one additional credential so that students can take advantage of that, avail themselves as soon as possible, which is the request to waive first review and move forward with this item. It's just so that we can make sure that this opportunity is available to students as soon as possible.

[02:44:10] Okay. Is there a motion to waive first review and approve the addition of the Board of Education approved? The mic's not on. I'm sorry. Thank you. is there a motion to waive first review and approve the addition to the board of education approved industry certifications occupational competency assessments and professional licenses as presented in this item so moved second any discussion on this item Ms. Holton I just Dr.

[02:44:41] Northen you've been trying to help us get our lists of approved certifications adequately cleaned up are we are we where we need to be on this or is this something we need to look at more closely And if you don't mind, if you've got any thoughts on it, I'd be grateful. Your expertise on this, I'd defer to.

[02:44:58] Dr. Northern, would you like to respond? I didn't hear you. I just saw marketing. You've been working hard on helping us get our CTE certifications cleaned up and adequately reflecting real industry need. Are we in the right track on this, or do you have any concerns that we should be vetting?

[02:45:18] This particular one on marketing, I have no concerns. I mean, the marketing, and I'm not aware of this particular IRC certification, but I know that marketing is a very common field that most IRCs have a marketing field on the IRC. And there's actually a national organization of marketers that has some

standards. So I don't have any concerns with marketing, no. Thank you. Okay. Anything further? Okay. Motion has been made

[02:45:54] and properly seconded. Ms. Kilgore? Aye. Dr. Northern? Aye. Dr. Bryce? Aye. Ms. Ashton? Aye. Ms. Holton? Aye, but noting that continuing objection to waiving first review. Thank you. Chair votes aye. Item M. Ms. Conway, that means you're up? Are you up for item M? Sorry. This is just a high Good morning. This is the item related to a law that was passed. And so this is a first and final

[02:46:32] review in order to fast track the regulations related to a recent law passed that requires the possession and the ability to administer epinephrine in all of our regulated child day programs. So we already have EpiPens in all of the programs in which children have been identified with allergies. The rationale for this law was a situation where a young child was in a program, did not know of the allergy, unfortunately was exposed to the allergen, and unfortunately passed away. And so this item is to ensure that we fast track the regulations to align with this law that

[02:47:11] was passed by the General Assembly. And this is a standing order, this is not person-specific? Yes, ma'am. So this is similar to other things that this board has seen in the past on standing orders. Okay. Is there a motion to waive first review and approve the item and amendments that are proposed in this item? I move. Second. Any discussion here? Okay. Hearing none, Ms. Kilgore?

[02:47:44] Dr. Northern? Aye. Dr. Bryce? Aye. Ms. Ashton? Aye. Ms. Holton? Aye. Chair votes aye. Thank you very much. Okay. And item in. Good morning again. As part of the Virginia Literacy Act, K through third grade students are required to be screened by a single comprehensive literacy screener. Beginning this coming school year, Virginia will administer VALS, which is the Virginia Language and Literacy Screener System developed by the University of Virginia. VALS

[02:48:23] replaces the former literacy screener PALS the mid-year screener is not required by law however as we look at the declines we've seen in literacy specifically since the pandemic UVA is recommending to screen at the middle of the school year to track progress and then identify any additional supports that are needed for students and the VDOE is in support of UVA's research-based recommendation the superintendent of public instruction recommends that the board approve this assessment calendar with the mid-year screening requirements for k through second

[02:48:58] grade on first and final reading okay is sorry is there a motion to waive first review and approve this assessment calendar on first and final review may i i'm sorry president may i first ask a question please is this um an item that is directly related to uva um would we like to bring up miss uh love on this one because i would have to recuse myself if it were the screener is um

[02:49:32] created and led by uva our teachers in our schools administer it submit the data and this is just a a calendar item okay thank you okay so um my the motion requested is still on the table anybody like to um i'll make the motion thank you any discussion on this item miss halton sure so just to make sure i understand what is this a change from the prior calendar correct previously the

[02:50:10] mid-year the mid-year screener was recommended this is changing that to be required for grades k1 and 2. so there is now a requirement of the or if we accept this it will go from recommended to required for the mid-year screener correct thank you for that clarification and has this change been vetted with the stakeholder groups yes we have a there is a stakeholder group that meets on this yes and this change has been vetted with them uh dr northern can you just walk us through a little

[02:50:47] bit let's cooper about the um importance of the middle screener i'm just curious how that's going to improve things for our kids? Sure. So currently the screener is administered at the beginning of the year. It is a much lengthier screener that assesses multiple skills that are needed at that point in time for K first and second grade students. They also currently will administer an end of year screener. So right now we have a starting point for our students and then what they would be performing at the end of the year and in between nothing unless a teacher does this on

[02:51:25] their own or maybe their division or principal requires them to do this. So having a midpoint of data really allows teachers to understand how much progress their students have made since the beginning of the year, but even more importantly, allows them to provide interventions as needed before the end of the school year. So this additional data will not only support the students and the teachers, but also the parents and understanding how far their child has been making progress throughout the year. Thank you. I think additionally, I would want to add that

[02:51:57] not only is it about the opportunity for teachers to remediate students that they need to progress further, but it also gives teachers an opportunity to accelerate students that are showing great progress. It just offers the opportunity to redirect instruction in ways that teachers need to have that in the middle of the year. So, Dr. Northern. Just to follow up, when teachers get the data back, is it organized by skills? Like how concrete is the information they're given relative

[02:52:35] to informing instruction? Sure. So, depending on the grade and the time of year, there are different skills assessed. Some are assessed multiple times depending on the grade. The teacher receives that data in the moment because they are the ones administering that screener to the child. They then input it into a system which then gives school leaders and division leaders a broader picture of the progress that their children are making, but it is broken down by skill.

[02:53:08] Any other comments? Okay, so the motion has been made and seconded. Ms. Kilgore? Dr. Northern, Dr. Bryce, Ms. Ashton, Ms. Holton, Ms. Aye, and chair votes aye. Thank you.

[02:53:26] Mr. Gilstrap, you're back up again. President Creasy, members of the board, Superintendent Kuntz, this afternoon, well it's not afternoon yet, today I bring to you for first and final review, the removal of the Virginia Communication and Literacy Assessment, as we know as the VCLA, to comply with the chapter 729 of the 2024 Acts of the Assembly.

[02:53:53] The following information is available in the agenda items available to you and highlights of this routine action are as follows. Chapter 729 from House Bill 731 of the 2024 Acts of the Assembly required that the Board of Education eliminate the requirement for any individual to take and receive a passing score on the Virginia Communication and Literacy Assessment as condition of the initial award or renewal of a renewable license as a teacher in the Commonwealth.

[02:54:22] Chapter 729 requires the board to revise guidance documents to comply with the requirement to eliminate the VCLA. The guidelines for prescribed professional teacher examinations includes assessment prescribed by the board for licensing, including passing scores on the VCLA set by the board. The revised version of the guidance document will be submitted to the town hall in accordance with the Administrative Process Act. The Superintendent of Public Instruction recommends that the Board of Education wave first and approve the first review and approve the

[02:54:59] removal of the VCLA to comply with Chapter 729. Thank you, Mr. Gilstrap. Is there a motion to wave first review and approve the removal of the VCLA to comply with Chapter 729? So move. Second. Any discussion here? Dr. Northern? So are we just saying that the praxis is going to replace the VCLA?

[02:55:24] The praxis is already in place, so that would just mean the praxis would be the remaining assessment, the VCLA would go away and there would not be a replacement assessment for that. Okay, thank you. Other questions or discussion? Hearing none, Ms. Kilgore? Aye. Dr. Northern? Aye.

[02:55:45] Dr. Bryce? Aye. Ms. Ashton? Aye. Ms. Holton? Aye. And chair votes aye. Thank you, Mr. Gilstrap. Okay, it looks like he is Deputy Superintendent Cooper. We could hold for one moment, please.

[02:56:09] In the 2024 legislative session, the General Assembly passed Senate Bill 5, which is the STEM plus C competition grant program that directed the Board of Education to develop and issue guidelines for the general requirements of qualifying for the competition grant and then to develop the application based on the guidelines.

[02:57:03] This act mirrors expired code for the STEM Competition Grant. The Competition Grant has provided funding to competition teams since the 2016-2017 school year. This legislation expanded the grant to be STEM plus C, which includes computing, and the removal of the minimum poverty rate application requirement that was required in the previous legislated STEM grant requirements.

[02:57:32] requirements. The superintendent of public instruction recommends that the board approve the 2024 instructions for qualifying for the grant and the grant application. Okay. Is there a motion to approve, to waive first review and approve the 2024 guidelines for the general requirements for qualifying for the STEM plus C competition grant and the 2024 STEM plus C grant

[02:58:01] application. So moved. Second. Any discussion on this item? Hearing none, Ms. Kilgore, Dr. Northern. Aye. Dr. Bryce. Aye. Ms. Ashton. Aye. Ms. Holton. Aye. And Chair votes aye. Thank you very much.

[02:58:24] Okie dokie. Dr. Carroll. Good morning. Good to see you all again. We went through some of this.

[02:58:44] Is that light on? Turned it on. Okay, good, good. All right, I'll start. Good afternoon, everybody. good to see you all again we went through some of this information yesterday in the working session but i want to talk through some of the updates on the school performance and support framework and the every student succeeds act state plan the essa plan so um as a reminder from yesterday the north star for this process has always been high expectations for all students helping all students

[02:59:22] advance a long continuum towards mastery. We want all students to advance. And that's embedded into the indicators in the way that the system has been set up. It's also another goal or aspect or that we're trying to focus on is transparency and access to actionable information.

[02:59:39] So any accountability system that works well has to provide clear and actionable information to those who are using it, whether that's be parents or educators or other folks out in the Commonwealth. the another one is stakeholder input that we focused all along this has been over a year long process and we've had multiple rounds of in-person and remote uh input and and that's reflected in the conversation today we have in part of that evolving process we've gone from the most broad to the most specific so we're getting more and more granular we voted in october last year the

[03:00:16] board voted to move forward with this process and then we had regulations that you voted on this morning to finalize which provide a framework the essa plan is is more specific and there will eventually be an accountability plan which is very specific on all the denominators and business rules etc um the other thing that i want to talk about is the reason that we're doing this and sort of the process is about student outcomes so as part of the in the wake of the global pandemic student outcomes went down and it wasn't reflected in the systems that the commonwealth had in place

[03:00:54] at the time so this is about capturing that performance trying to provide a better framework for how we evaluate school success what you have today are a few documents for first review and i want to go through them and then we can talk through them the first is a document looking at the readiness waiting of the different metrics so there are uh growth and mastery uh measures that are not included in this what this is focusing on is the readiness bucket and what it

[03:01:28] will mean for schools there's a handout of when the indicators will be used and what will be included um one thing i'll say for the board and for the public to to hear and understand is that not all indicators are moving on the same trajectory so some indicators some indicators are very well defined and have been used in the commonwealth for a long time such as the chronic absenteeism or the english language pro progress uh some indicators we've been developing as part

[03:02:02] of this process and so that's the reason for the phase in that's the reason for some of the conversations and ongoing conversations we had yesterday and today and hopefully going forward as well. I want to give a brief overview of the ESSA state plan, the Every Student Succeeds Act.

[03:02:21] There is a red line version that's up for the public that they can see. It's been up for the board. Hopefully it's not a surprise to anyone. A couple of things I will flag are that the federal government, this is a plan for the federal government. The federal government has certain ways that they ask information to be presented and they bucket things slightly differently than what we've been talking about it here in Virginia.

[03:02:45] So I want to talk through just a few of those things. The first is the readiness component is the federal government calls that the school quality or student success indicator. And what we're categorizing that for the federal government are things like chronic absenteeism, the advanced math coursework in middle school that we've been talking about, the extra or additional completion metric in high school, the ready for life three E's conversation that we had yesterday of helping students in high school get ready for enrollment,

[03:03:21] employment, or enlistment and enlistment. The mastery index for science is also included in this section. And then there are other things that we put in there as flags that we're going to keep working on. They're not perfectly defined. We don't have things like numerators and denominators in the ESSA plan, partly as keep preserving flexibility for us as we keep moving forward.

[03:03:42] And Chad, hate to bother you, but that flexibility is allowed, correct? Yes, it is allowed. Thank you. Just clarification. Yeah, this was a big thing that states did when they wrote their original plans is they want to provide enough information for the federal government to understand what the state is doing, but not so much that you have to go back to them every few months to get approval.

[03:04:06] I think that we wouldn't want to do that and lock ourselves in for the future. Another thing that I think the public, there's some misunderstanding about is participation and parental opt-outs, parental

refusals. The federal government has requirement that 95% of students must be counted, even if there are some parental opt-outs and refusals.

[03:04:30] That has been the practice in the Commonwealth in Virginia for the federal system. So that will not change. What's different is that we're getting away. We're merging the two systems. So that we'll be using the same one we've been using the federal plan before. The growth component, we had some conversation yesterday.

[03:04:48] I just want to float it here and flag it here today that it doesn't lock us into a particular method or a particular vendor. What it says is that we'll be using it in our accountability system, looking for students to make expected growth year over year. Another thing that I mentioned yesterday I want to flag again is the minimum student group size, what's called the in size for accountability purposes.

[03:05:12] And this is when a student group is included in the accountability system. There was a comment this morning asking about how we were going to include student groups in our new accountability system. And I want to emphasize two ways that's being, three ways that's being done. One is the federal government requires that English learners be included.

[03:05:34] In the June meeting, we presented information that approximately 35,000 English learners will be included in the system that were not being included in the past. So that's a big improvement on inclusion of students. Chad, can you reiterate that, please? Yeah, so...

[03:05:49] And say it louder. Yes. So in the past, Virginia had two systems. They had a state system where English learners could be excluded for up to 11 semesters. So essentially five and a half years, they weren't held accountable for those students.

[03:06:06] The federal government says that's not allowed. You can exclude them for one year, but not after that. And so we ran the numbers. And just to be clear, the federal system of accountability that Virginia has been running has included those students after one year. But by merging and combining the two systems going forward, that means we have to follow the federal rule on this particular element.

[03:06:28] And that will mean the inclusion of 35,000 English learners across the Commonwealth who are not being included in the state accreditation system. And so that is a big progress. It's a way to shine a spotlight on students who are not being looked after before.

[03:06:44] Similarly, as on the minimum student group size, so this is whether to look at a particular student group as a element of that school. And in the past, Virginia used an N size of 30. So if a school had 29 students with disabilities, it would not be held accountable for those student group.

[03:07:04] If they had 29 Black or Hispanic students, the school would not be held accountable for that particular student group. We have proposed and we've run the numbers. We looked at it at 10 and we looked at it at 15, and we settled as 15 as a reasonable number of accomplishing several purposes of shining a more transparent light on these student groups.

[03:07:26] We ran the numbers, and it's in the SSA plan. By lowering it to 15, we will have 448 schools that are now going to be newly accountable for students with disabilities. That's going to capture more than 10,000 students with disabilities across the Commonwealth.

[03:07:42] These are representative. There are other examples in the SSA state plan for black students. 312 schools will be newly accountable for that student group. And that's going to capture more than 6,500

black students across the Commonwealth who weren't included before.

[03:07:59] Ms. Hulton. I'd prefer to wait till the end. Thank you. The ESSA plan also includes the weighting of components and indicators, just to flag that we have a crosswalk in there because the federal government has slightly different rules about how they categorize things.

[03:08:23] It's different than how we've been talking about it here in Virginia. And so there's a crosswalk to help people understand that. There's also technical edits. And so there's some red line of the system is changing, particularly around the old system used more of any school could be a flag for any particular indicator. And the new system is a more holistic index-based approach. So we had to rewrite that and redefine that.

[03:08:53] There are also some indicators that there weren't that many changes. So something, for example, the four-year adjusted cohort graduation rate has been used in the federal system for a long time. There is no need to change that. Similarly, on the progress for English language proficiency, that measure did not need to change and yet be updated. So that's sort of the highlights of the overview of the ESSA state plan. The other thing that you all have as a handout is a very simple explanation of the new system. This is meant for a lay audience to understand what the new

[03:09:30] system school performance and support framework will do. It's meant to be an outward-facing document. It's a handout. It's how the system will work for teachers, families, and educators across the Commonwealth. Just as a process point, these are presented as for a first review for the board. The asset state plan in particular will go out for public comments, and we will return after and give you feedback on what we heard. I will pause there and happy to take questions or

[03:10:04] comments. Questions? I know Ms. Holton has one. Chad, help me understand on the student groups, the additional student groups that are being identified by moving from N to, I mean, additional impact of moving from 30 to 15, all of that will go to the process for identifying CSI and comprehensive services schools and targeted TSI schools, right?

[03:10:43] Yeah, it's primarily for what's called the targeted support and improvement schools. Those are schools with any student group that by itself is performing at or below the level of the comprehensive support schools, which are the bottom 5% of schools in the Commonwealth.

[03:11:00] So the way it works mathematically is you look at the 5% of school of Title I schools to establish your cut point for the comprehensive support schools. And then you use that cut point to look at student groups that meet the qualifying threshold.

[03:11:18] And so that change would be what was reflected in increasing the expected number of TSS schools from 250 some to 300 or 200 some to 335 some that that is what you're referring to when you say there's going to be more accountability but am I right that in our primary indicators for so the TSI designation we are going to expand the number of schools identified as TSI but in our primary

[03:11:53] indicators on readiness, mastery, growth. We are not going to be looking at groups. We're not going to be weighting that in our overall summative rating. It's not going to affect school's categories. Am I right about that? We're not double counting student groups. So they will still be included in the overall. We're not having a separate call out for the student groups, getting them a separate percentage weighting. There are states that have done that. And we

[03:12:29] chose not to partly because it can be really confusing. And you get into really small weightings of think of the chronic absenteeism, if it's 10% overall, if you start doing it by student groups, you get to really small percentages for black students or students with disabilities. And it just becomes another data input point that schools and divisions have to look to. And then so they're included on the back end more as a check to make sure that with a targeted support identification system is a way to identify schools that are maybe doing okay overall, but are struggling

[03:13:06] with the performance of certain subgroups or student groups. But that TSI- Ms. Fulton. Thank you. Expected to impact that hundred or so schools going from 250 to 350. But now, under our current system, we do require all schools to work to reduce all of those gaps.

[03:13:25] And we do have a system that helps, you know, a school doesn't get dinged under our current accountability system unless they've got issues on more than one subgroup. But we do look at our proficiency measures.

[03:13:42] Fair question. Subgroups. Yes, we do look at absenteeism across subgroups. We look at career readiness and how is this new system, for instance, going to identify if black students are less successful or low income students are less access, less ready under the high school readiness measure, for instance.

[03:14:08] Yeah, we chose not to have a system where any school could be flagged for any student group on any measure. And so there is this holistic combination index that gives an overall score. And then the targeted support and identification system is meant to identify schools that are struggling, that are not doing a good job for certain student groups.

[03:14:33] And that would lead to the school improvement process that Ms. Carol talked about yesterday of that's where it'd get into the digging into the data. That's where it'd get into what particular challenges is this school facing? Is it an attendance issue? Is it a math problem? And it would dig deeper into those sorts of challenges.

[03:14:53] I have one more question on that topic. I think the other thing to note is that under the Every Student Succeeds Act, we are required to report how student groups are performing against those targets.

[03:15:09] So we will not be losing that reporting that occurs on our school quality profiles. Reporting but not using for accountability. Just on that one, that topic, and then I have another area I'd like to ask, chat about.

[03:15:24] But on that topic, does the TSI calculation take into account subgroups on all of the indicators or just on the academic indicators? Yeah, it's all indicators.

[03:15:40] So what it does is, first, it calculates a score overall. I gave some examples yesterday of how it works, of adding up the school's score for elementary. Mastery plus readiness plus, sorry, let me say this again.

[03:16:01] For elementary schools, adding up mastery plus growth plus readiness, that gets the school's overall scores. And then the overall scores for Title I schools are ranked, and the bottom 5% are identified as the comprehensive support schools.

[03:16:17] And that 5% becomes the threshold to identify schools that have low-performing student groups. So you use that same threshold to look for students with disabilities, for black students, for Hispanic students, for English learners, and to see if any of those, any school has a student group that has

enough students that is below that threshold, and those schools become identified as the targeted support and improvement.

[03:16:45] But just to clarify, that threshold is not just on the test scores, but also on, for instance, the new E3 framework. Yes, it includes all of it. I do have another area. I'll do that now, or I'll save that until later.

[03:17:03] Is it on this particular item? Well, it's on what he's just presented. It's not on the TSI issue. Okay. We're trying to wrap this item up. So go right ahead, please. Thank you. as as as concisely as you can well as we've said yesterday this is the most important work this board does and we did at length and i've got a number of other questions i'd like to ask today and comment i'll want to make as well uh miss ashton um ma'am chair can you just i'm um can you clarify where we are in the process we've heard a presentation there is a motion and i know

[03:17:40] are we in discussion just so i'm clear no so this is this item is strictly for first review we are not taking any votes on this item today right so this is the opportunity for questions with respect to the presentation and the merits am i right uh yes but we will also be hearing this again next month on final review so i've got two more areas that i think are appropriate for questions to the presenter this month and would ask the opportunity.

[03:18:14] Okay. Let me ask the board if anyone else before Ms. Holton continues with her line of questioning. Dr. Northern. So, Chad, as we continue to, you know, send this out for input and so forth, what would you recommend we, how we position the appendices, you know, where we've, you know, know, we're not where we, we haven't gotten there yet, right? In terms of these targets and long-term goals. So what would, how should we be thinking about that at this point? Yeah, I will start and

[03:18:49] then maybe Ms. Carol would like to chime in. We, as part of this process, we did not touch the long-term goals, which are required as part of the Every Student Succeeds Act plan. There's a couple of reasons for that. One is that the goals are not necessarily linked to what's actually in the school performance and accountability framework. And so it doesn't really matter for a school or division what the goals are. They are high level goals from the state to shoot for.

[03:19:20] So that's one reason. The second reason is that we felt like there was a chance in potentially in the future to revisit those once new assessments or new cut scores have gone. So they haven't been, we wouldn't want to reset them every year. It's more of a process of when would want to do that miss carol you want to say anything i would just add that this is i think our seventh amendment and so i think we're already aware that we will have an eighth amendment um to include some of the items that we're intending to have in the federal system for a year two and so our indication is that we can revisit the long-term goals and measurements of interim progress at that

[03:19:58] time thank you any other questions dr bryce thank you madam president um so part of the goal of this is to increase transparency to parents, especially on how their children's schools are doing, to what extent can we provide parents a breakdown of how each school has been rated? So will parents be able to see what level mastery and what level growth and what level readiness for each school?

[03:20:29] Yeah, it's a very good question. It's something that we've been working towards. We definitely have that as our end goal in mind i wouldn't say that it's been fleshed out exactly how it will look that's more of a report card conversation so that is coming it's just not we're not there yet but yeah it's definitely

our intention that it would be very easy for anyone to understand both overall performance as well as any indicator level results as well other questions miss holton

[03:21:06] On that topic and a number of others, I'm hearing from you that we're going to flesh out things later. I think you said there's, I think you may have referred to an accountability plan or a manual that will flesh out more of the details about numerators and denominators. When is that going to be finalized and made available to the superintendents and school boards so that they can be trying to gear their schools towards success under these new metrics?

[03:21:35] Yeah, once again, I'll start and then turn it over to Ms. Carol. So we have, Virginia has an accountability manual right now. It's not a document that went before the board. It is something that goes out. It's very wonky and technical. It's for divisions and people who are working in schools to understand sort of the finer points of it. And so our plan is to have that ready as soon as we finalize some of the elements here. It would be our next step.

[03:22:03] It's one of the things that we're working towards. We don't have that yet. Again, it's not a board approval type document. It's not a public transparency type document. It is for people who want to really dive in. Anything else? I'm not sure if there's anything to add.

[03:22:20] I think you covered it pretty well, but I would say through the modeling that we're doing, we already have some of the numerators and denominators already developed. It's just a matter of making sure that we have them finalized before sort of releasing them to the public um since they can as chad mentioned get very wonky and detailed you mentioned to us yesterday miss holton and today that there's going to be additional modeling is that going to be brought back before the board so for instance we can see how the e3 framework is going to work and so that we can see the additional demographic modeling that we asked for yesterday is that going

[03:22:57] to come back before the board at some future meeting and if so when dr coons yeah we stated yesterday that it was coming back in August. Great. The other question I wanted to ask is to help understand that if it helped me understand, am I correct that 100 plus schools are going to be in this needs intensive, we anticipate 100 plus schools going to be in the needs intensive support category at least and maybe more once you take into account the impact

[03:23:30] of TSI school designations bumping schools down, but only about 41 are anticipated to be getting intensive support through the federal government. What does the system provide to the other 60 plus, what new supports are we providing to the other 60 plus schools that will actually help them with operational needs on the grounds in their schools like what we heard from Mr. Kamras this morning for those other 60 plus schools in needs intensive support and what other new supports are going to be made available to the 900 plus schools that are being labeled off track. Dr. Coons. One,

[03:24:09] Ms. Fulton, we talked about this yesterday. The 2023 data is a prediction of 2023 data. We fully expect less schools and we had that conversation yesterday. Second, yesterday Ms. Carroll presented the tiered support framework and board president Creasy asked us for a more detailed presentation in August. So that is scheduled in August. Thank you for your question.

[03:24:32] Ms. Holton? The next area I'd like to ask about is when are we, when is now the right time to give you further input about the E3 framework and when is it going to be finalized? And I'll just include in particular, are we going to have a, maybe this is a question for you, Ms. Creasy, are we going to have a

discussion, for instance, about the suggestion that we add work-based learning back into the framework. We heard the Chamber of Commerce strongly arguing for that this morning.

[03:25:01] Yes, I think. When are we going to have an opportunity to make a decision on that? Go ahead, Dr. Koons. Ms. Holton, we discussed this yesterday, and we talked about the inconsistency of work-based learning across the Commonwealth and the goal to work with multiple partners to increase the consistency and quality of work-based learning so it can be outcome-based like the other three e-readiness measures, and that was the intent, and that information was provided yesterday as well. I did hear that yesterday, but I would like to make, I would like us to have an opportunity to vote at some point on whether we should be abandoning our

[03:25:35] existing work-based learning metric as we convert from CCRI to E3. So contrary to the advice of the business community, I'd like this board to go on record on that. When will I have that opportunity? We will give you that opportunity next month because I think that, I don't think that there is a difference in opinion in the value of work-based learning. So let's just lay that as a foundation here to this discussion. Because right now, if you think about work-based learning, in some situations, it is not standardized. It is not measurable. And we need to get it to that

[03:26:10] point. So maybe that clarifies the issue a little bit more. So one student's work-based learning experience may be vastly different from another. One student's work-based learning experience may be way more rigorous than another student's and we must achieve some level of measurable outcome in order to include it in the system. May I ask then that we hear next month before we vote on it from the committee that the department leads that's been working on this exact issue and has developed some very rigorous standards to determine the validity of work-based learning experiences.

[03:26:49] That would be helpful to my vote on the matter. Dr. Koons? And right now, all the reporting measures that we have on work-based learning are self-reported, so there's no qualifying metric for that. Madam President May. Ms. Ashton? This is why I wanted to really be clear on what's the point what what what are we voting on something what i understand is that this is first review we will have final review and that um miss holden i i appreciate your questions but i also

[03:27:22] want to make sure they are in in the context uh what the framework is it seems to me that there what you're wanting is more clarity but but what i think the team and because we have been meeting i think you said version seven or eight of this is that i believe there's a level of flexibility in this program for us to continue to learn to continue to incorporate what we're doing um when it comes to our standards when it comes to our priorities so i think uh again just point of order and again i i appreciate the questions i think we have engaged a lot of stakeholders and

[03:28:02] we want to continue to engage stakeholders but again point of order we are moving a framework i'm looking at the last recommendation is in general does the the supporting of the elementary middle high school framework the ss state plan in this overall performance framework i am in support of that um i would love for us to continue to what i heard is that there's been modeling that there will be additional information provided in terms of tiered support i hear miss holton

[03:28:37] asking for additional information around workplace learning i have never in any of these conversations thought that that wasn't a priority i thought there is flexibility for us to continue to flesh that out and so again i think i want to make sure we're answering questions but i also want to make sure that we are moving the discussion along because we have we have been talking about this And I don't believe,

unless you are saying, Ms. Holden, that you are not in support of their framework, then I think where we are is let's move this forward.

[03:29:09] And if there are, I would want to know if there are specific things you want to see, then we should ask the superintendent and ask the team if they have it. But I think that we have talked about this and their framework is moving in the right direction. And so I would like for us to move this conversation forward.

[03:29:28] Madam President. Ms. Holden. that uh i i appreciate your the the discussion today you're right is not for a final vote but as i understand the purpose of first review is to air questions and thoughts so that when the product comes back for final review next month it can be the very best product uh that that we can get to and i i hope that my questions are directed to that certainly what i heard yesterday is the work-based learning indicator that we currently have as part of our ccri is being dropped as are being proposed to be dropped as part of the new e3 framework and i'm asking if we can frankly

[03:30:07] i'm asking if we can see a model that would add that back in that would be a request for next month and i have one more request and that is can we also see a model next month as an alternative an alternative version of the cutoffs because if we're going to have four categories with the labeling that the board has agreed to, we've only seen this one option with the 90% and the 80% and the 65%. And that produced a result that's not consistent with my understanding of our public schools, that 60 plus percent of them are off track. And I hear Dr. Koons' point, but the data

[03:30:44] isn't going to change wildly. And I think if anything, it's probably likely to get that while performance may get better, the number of schools rated off track could get worse for a variety of reasons, including whatever we're going to do about test scores, cut scores. So all of that is, I would love to see an alternative. And can you all bring us back an alternative next month that includes different options on the cutoff between the four categories, number one? And number two, can we also see different modeling that takes into account the differing averages that we discussed today on the various indicators.

[03:31:22] Some of these averages, the mode is around 70, 80, 90 percent. And some of these indicators, the mode is around 50 percent. And exceptional scores are going to be not recognized adequately under the new system.

[03:31:39] So my question is, can we see this is, I think, the right time to be asking for alternatives to be considered as part of the process? So can we see those alternatives brought back to us next month? Dr. Kunz? Ms. Holton, what did you say I said?

[03:31:56] I'm sorry. I heard you say, as Dr. Kunz said, the data won't change very much. I don't recall saying that. No, I didn't say that. I didn't mean to say that. If I did that, I misspoke. You have suggested that the school performance is going to result in fewer, because schools are doing better in the 23-24 school year, we all hope did better, that we're going to have fewer schools identified as off-track. I am saying, I hope that I'm happy to speak for myself.

[03:32:25] Yeah, well, that's what I heard you say. I am adding to that, that I think there will be some factors that will cause more than 900 schools to be identified as off-track. As Chad has told us, I think I understood them telling us that they haven't yet added in the impact of the TSI ratings that's going to cause more schools to be in the off-track category. And I also believe this board is planning on addressing test

cut scores in January in such a way that it's going to potentially negatively impact how many schools are rated off-track. And therefore, I think it's an

[03:33:02] appropriate request that we get some alternatives, and frankly, some that better align with what parents know. Parents know the majority of our schools are not off track. Thank you. Dr. Brice?

[03:33:18] I don't see the purpose in continuing to remodel using old data. You know, I think we, as Dr. Coons has said, these data are from the 22-23 school year, and we do expect things to have improved this previous year. I've heard a lot of reference to, you know, how we ranked first in country in the CNBC. Ms. Holton referenced that yesterday in the CNBC article, and that parents know how we're doing, and these categories don't accurately reflect what parents know.

[03:33:54] The data are the data, and we're not passing judgment on schools. It's not a reflection of how hard teachers are working, but this is merely a tool, and I don't see the purpose in reworking this so that school fewer schools are indicated to receive support if you know we have reason to believe that they need support then we should give them that support um you know last year only 66 percent of our third graders passed the reading test so um clearly a lot of our schools

[03:34:31] do need support thank you um so uh with nothing further the board will accept this item for first review thank you um let's see i don't know if we want to okay uh let's go ahead and bring up

[03:34:56] miss conway please good afternoon um i am pleased to present this afternoon just a reminder and review of where we are on the draft standard for licensed child day centers go to the next slide some of you were present last summer when we brought this item forward at the nora stage but

[03:35:27] But because we do have some new board members, I'd like to take a few minutes just to walk you through the process that went into these regulations as it involved quite a bit of stakeholder input. We've actually been working, the Department, the Office of Child Care, Health and Safety, very closely with the Early Child Advisory Committee, stakeholders in the field, and you all to revise these standards since December of 2021.

[03:35:50] So it was a condition of the transition discussed with the field prior to the support of that law in 2020 that once we had moved over oversight of child care licensing, that we would do a top-to-bottom review of the regulations. And we've done that over the course of now really the last three years.

[03:36:06] I'll take us through the process. I'll highlight what's in these. I'll do a quick comparison and then just orient you on the cost impact as this is just first review. So it has been a lengthy process, and from the outset, as part of the stakeholder engagement around the early childhood law, that we knew we would need to bring everybody to the table.

[03:36:24] So we established a work group. It included members from our legally required early childhood advisory committee, as well as additional practitioners from the field, child care directors, large centers, small centers, YMCA, pediatricians, you name it, we brought them to the table.

[03:36:41] We met multiple times, almost monthly, for most of 2022, and this work group dedicated more than 20 hours of time. And when I met, we went line by line. We literally went line by line with the room. We recognized at the outset, and we had a conversation about guiding principles as we knew that there would be tradeoffs.

[03:36:59] We need to make sure that we align with federal state law. We need to protect the health, safety, and well-being of children. On the other hand, you can't put kids in a bubble, right? And there's also a cost to that. So kind of reckoning with how do we keep kids healthy and safe, but also make sure that costs are reasonable for our private providers and that we have a diversity of private providers across the state. In April of 2023, we finalized a version of those regulations. We spent several hours when we review child day center regulations. We actually started our meeting earlier in the day.

[03:37:32] We had a fire drill and walked out 21 flights of stairs. We bonded as an ECAC. Well, I took the elevator back up, and everybody had sore calves two days later, but we got an endorsement with recommendations. We then brought that to you as a NORA in June 2023, which you endorsed, went out for public comment, and we now have received all the public comments to the NORA and are bringing this for first review. So still some work to be done, but just wanted this body to understand how much stakeholder input has been involved. It's sort of a unique process relative to some of the other regulations that we bring before you. These are the goals. Again, working

[03:38:09] closely with stakeholders, alignment around these principles, improving compliance to keep kids healthy and safe, reducing duplication, increasing clarity, increasing flexibility, and also making sure that we are complying with all applicable federal, state laws, some of which are new, and also the governor's new Executive Order 19 to reduce regulation for private business.

[03:38:33] A couple of highlights for you. It's a longer document, but basically providing some ratio flexibility, which we have had in the budget the last few years, giving folks the ability to go up without changing the ratios wholesale, but giving programs, whether it's due to staffing shortages or their unique context, some flexibility around ratios, expanding qualifications for lead teachers.

[03:38:55] We've heard tons of issues from the field about how do I hire, providing maximum flexibility, particularly when we know that all of our publicly funded programs are now subject to participation in BQB5, adding that flexibility at the beginning and the end of the day. Many of these programs are open 10, 12 hours a day, and there might just be one child, right, who is needed there because mom or dad is at work until late, and then really looking to streamline the training, which also was a law that was passed this year to make us to have a take a second look at that. And then some, as you see, reduction of the administrative burden. We put this out for public comment after we took it to the NORA. We received

[03:39:34] just over 500 comments from about 240 commenters. We went through those line by line. They're also in the town hall document just to be very, very responsive. This is a handful of the concerns. Some of them are changeable things and we've made changes in response. Some of them like related, I just mentioned to you, the epinephrine or the drinking, the lead testing are new laws that we do not have any flexibility.

[03:39:56] So again, just a reminder, this document reflects a combination of regulations that you do have choices with and then places where we've codified or we've put into regulation things that are already in code that we don't have much choice ever. Just as a comparison, we have a much more streamlined document.

[03:40:14] I'm sure you didn't feel that way when you opened this and saw 50 plus pages of this and 20,000 words, but that's down from 67 pages and just nearly 27,000 words with, again, working so closely with practitioners to make sure that there's clarity, right? We didn't just sort of go through and cut words arbitrarily, but really went regulation by regulation to make sure that we were clear so that when we roll

this out to several thousand sites and across our team of 100 plus inspectors, that there is clarity of understanding and what we're asking programs to do. We've had a pretty significant shift in how we manage child care, health, and safety. We don't

[03:40:52] even call them licensing anymore, although they do provide licenses. Their goal is to partner with private providers across the state to keep kids healthy and safe. And if they don't understand or the regulations aren't clear, how can they possibly, you know, partner with us to do that? And these are just a handful of what is absolutely new and that you've heard about, some of which are We don't have flexibility on this is the Dapinephrine and the lead testing, some of which we do in terms of just using kind of the right terminology, making sure we're minimizing the new requirements.

[03:41:25] And then there are certain things that we know in 2024. I'll give the example of safe sleep, right, where we feel obligated. That is still one of the most dangerous situations, making sure that we have the best in class expectations. The same is true for SWIM and some other areas where we've seen children in harm's way in recent years.

[03:41:45] And then in terms of cost impact, I won't read this through you, but we have gone through, as you might remember, I've shared with this body before, Virginia is one of three states that looks at the actual cost to operate when we set rates for child care. This is just for the publicly funded programs.

[03:42:01] We obviously don't set rates for the privately ones, but it gives you a very good tool and methodology for thinking about the cost to operate. And then if you change our regulations, what does that mean for the cost to operate? So we have using the same outside experts and that same methodology gone line by line through those 50 plus pages, worked very closely with our both access and enrollment team that crunches the numbers and our health and safety to do this analysis for the Office of Regulatory Management.

[03:42:31] because we are offering ratio flexibility and because uh cost uh or the compensation rather the cost of personnel or compensation is about 80 of the of the bottom line of a center what you see is offering that flexibility means that there's not an additional cost in fact there are potential savings for programs do note that this is our best possible estimate but there is you know there's obviously always going to be a range and sort of what programs choose to do and don't choose to do will affect this cost estimate. But overall, we are pleased, our ECAC has endorsed this multiple time, pleased that this ultimately, potentially, depending on the choices you make as a private

[03:43:09] operator, could represent cost savings. So with that, I recommend on behalf of the superintendent that you receive the Child Day Center regulations for first review. Thank you, Ms. Conway. We will do so. We'll take this item on first review. Thank you.

[03:43:26] I think Dr. Rayleigh is going to be presenting this item, item S. Good afternoon, board members. I'm here today on behalf of the VDOE team, including Vijay Rahm Narain, Carrie Miller, and Kent Dickey, who have done a lot of work to get us to this point in time. This is being presented for first read today, and I have the opportunity to review these over the next month or so, and then provide final action at your next meeting or in September.

[03:43:58] These school bus specifications were last revised in 2019, and given that, our team began an initial review in the spring of this year, convened a group of stakeholders, including school bus manufacturers, state police, and other relevant stakeholders. All that work was done prior to the passage

of HB 937, which is now law, and given that signage, we convened an additional group of stakeholders that provided perspective on this topic, including parents, superintendents, local directors of transportation, and other central office personnel just to provide a different perspective on this work.

[03:44:34] and ultimately board members what's presented to you today is are this technical specifications but also looking at these specifications to provide greater insight to the reader regarding potential alternatives and options that are available through transportation hb 937 set the tone for that and ultimately this document articulates some of those options i want to draw your specific attention to page 9 of attachment 2 which includes some options for a class a bus that maybe other citizens in the commonwealth may not know and that there are some flexibilities

[03:45:09] currently associated with the requirements for driving that school bus that many do not know and that we as an agency provide some trainings that do not require someone to hold a cdl so we wanted to be explicit not only about that but other options as well that could provide some flexibility to practitioners in the field so huge thanks to the stakeholders that provided us with great feedback but ultimately wanted to provide some additional information in addition to the technical specifications to be able to allow for some flexibility so presented for first review today thank you dr raley i do appreciate the clarity of this document as you and i talked about before

[03:45:49] the previous documents were often misunderstood by practitioners and those that deal with with our bus vehicles so do appreciate the clarity that was provided in this document are there any other comments or questions if not we will accept this item for first review and we will see this item again in our next meeting thank you thank you um deputy superintendent

[03:46:19] cooper hello again so this item is the first review of the updated k5 ela supplemental and intervention list reviewed by the University of Virginia as required by the Virginia Literacy Act.

[03:46:38] This list provides school divisions with approved options that have met the bar for quality through the materials review process. Divisions have the option of selecting a supplemental curriculum or an intervention curriculum that meets the needs of their students.

[03:46:53] The superintendent recommends that the board receive this for first review and I also have Ann Eaton here from UVA to share the updates to the documents that you have. Hello. It's so good to see all of you again today. I did want to let you know that in our haste to get all the materials ready to meet the board deadline, there were three typos that we did not catch until after the materials were given to you. Those were three errors that were made when there was transfer content to the graphic designer. Those have since been corrected and the updated

[03:47:30] and corrected forms are online right now. - Comments or questions, Dr. Northern? - Can you just remind the board of the difference between a core curriculum and an intervention, how these materials will be used?

[03:47:48] - Sure, so there's three. The core is what all students in every classroom use. That's tier one instruction. Supplemental is whenever students need additional practice or instruction in one of the literacy content areas. And intervention is specifically for students who have been struggling, who have been identified as struggling readers.

[03:48:09] And so they are provided additional intervention. So there's really three tiers. We've already done the core. Today we are presenting additional supplemental and intervention for grades K through

five. - Other questions, comments?

[03:48:26] Dr. Northern, anything else? - Do schools have to adopt from all three tiers? - They certainly need to have a core. And, um, most schools are choosing to adopt supplemental and would need intervention for any students who are struggling. So yes, in order to be in alignment with the Virginia Literacy Act.

[03:48:48] Yes. Okay. Thank you. Okay. Anything else on this item? Okay. Thank you, ladies. We will accept this item for first review and see you next month. Um, okay. We have, looks like no presentations and reports on our agenda. Discussion of current issues. Dr. Coons, would you like to go first?

[03:49:16] Okay, I will go then, unless there's any other board member that has an item for discussion. Ms. Holton? It is now our chance for open board discussion. As long as it isn't lengthy. Yes.

[03:49:35] if we'd like to take a break first I'm happy to do that at first just wanted to join you had the opportunity earlier to welcome our new board member and we didn't the rest of the board didn't yet have an opportunity to do that and just like to welcome Dr. Bryce to the board who I had chance to meet yesterday at the beginning of our work session our executive session yesterday morning welcome you to the board and our other new member who will have a chance to meet next month

[03:50:07] This has been a great and collegial group, all focused on the best interests of our schoolchildren, and I know you'll join us in that wonderful focus. Second, I wanted to thank Dr. Koons for following up on the work that the young women from Prince William, the students from Prince William brought us this morning about the unified PE.

[03:50:34] This is just a really amazing work they're doing for students with differing abilities, doing PE together to everybody's benefit. And they had at some point asked us for a regulatory change, but Dr. Koons has assured all of us, them and me, that we can approve the unified PE as meeting the PE requirements for 9th and 10th graders without a regulatory change.

[03:51:03] And Dr. Koons has offered to bring that to us at our next board meeting for action. So I just really appreciate these students brought this issue to us first in March or April, and she and her team have just been terrific in working with them and moving quickly to get that done. And so I just wanted to flag that Dr. Koons has done great work responding to these students terrific initiative and look forward to that.

[03:51:28] I wanted to thank the Library of Virginia, which I understand is going to be our permanent home. Thank you, thank you, thank you. This space works so well for us. And as one of the speakers said today, it's a perfectly appropriate home for the Board of Education meetings. And finally, I just wanted to take a minute to reflect on the member who has departed this board, Alan Siebert. I'm so sad that he won't be continuing to serve with us.

[03:52:02] you all know that Alan has been an extraordinary champion for Virginia's school children and our educators all across the Commonwealth. And I'm particularly disappointed that we didn't have the opportunity to recognize and appreciate him in person last month because we didn't know that it was going to be his last meeting. He was appointed two years ago by Governor Youngkin and his approach to fill a partial term and that partial term has now expired and i'm just

[03:52:38] his passion for innovation his deep understanding of what works and what doesn't work in the virginia school system his credibility with the other superintendents you know he was a regional

superintendent of the year he was the chair for a number of years of the superintendents association and therefore had that kind of credibility with that group. His passion and focus on assessments, which is one of our biggest challenges in Virginia, we've got to modernize our antiquated assessments. And he understands that so well. And I know all of us enjoyed his

[03:53:14] wonderful metaphors and his magnificent sense of humor and goodwill. He and I differed on many things and agreed on many things but he always uh presented his views thoughtfully and when he spoke we all listened because we all knew what he was talking about he knew what he was talking about and we'll miss him thank you madam that's miss ashton yeah i want to echo um the just appreciation for alan and his service he was again offered a different perspective and i think often really worked to find the common ground and to help us move our work forward on behalf of students so

[03:53:52] thank you for raising that thank you miss coco oh yeah which one oh okay um just want to keep on um for alan um not only all of that but my very first um meeting i was walking you know three blocks to my car after a dinner and he's like there's no way you were walking by yourself and i just found him just personally uh he's a gentleman um so uh personally he'll be missed as well as professionally

[03:54:26] And the other thing I just want to bring up was if the team could look into the DSST, that was another thing that was brought up this morning that I wasn't even aware of, that that was a college credit mechanism, I think, for military folks. So anyway, we always get some good nuggets of things to think about during public comment.

[03:54:48] Ms. Kilgore. I also want to echo a special thank you to Alan. When I joined last July, he did something very similar to me when I got lost in the parking garage over at the other building, but he was always professional. I learned a lot from him. I trusted his opinion, and I thank him for his service, and he will be missed. So I guess before I hand it over to Dr. Coons to carry us home on this meeting. I just want to say that personally, there are things that, you know, Alan and I work

[03:55:24] together on that are so, I mean, the number of hours that he and I worked together on certain items will only be known to the two of us. And I absolutely and very deeply appreciate not just his professionalism and his perspectives, but more importantly, his friendship and honestly, his love that he gave to each and every one of us. But I'd like to thank for me very specially

[03:55:58] in a very special way. And so Alan will be my friend forever. And I thank the governor for bringing him into my life in the way that he did on this board. And I certainly plan to continue to seek his counsel on the matters before us, because I do believe that his voice is very unique, but also very important to the conversation. So kind of changing gears here,

[03:56:34] I would like to to throw some props to the library because we are now in a new hopefully somewhat permanent home for our board meetings, and the library has been so amazing at accommodating us, and they have so many incredible resources that I don't think are well known to teachers in our classrooms, schools across the Commonwealth that they can use both online and in person here at the library. And I would strongly encourage schools

[03:57:11] and school divisions across the Commonwealth to really lean on what the library has to offer instructionally. We have a number of different items on the back table that the library has left here for us. I know we don't have that many people left in the room anymore, but I would certainly encourage you to grab some of those resources and use just this amazing place for what it offers to all the citizens of the

Commonwealth. Dr. Koons? So I also want to thank Alan. Alan and Grace were two of the first board members who sat down with me, welcomed me, gave me the history

[03:57:50] of several of the board events that I had on my first couple of days. And I really appreciate the thought partnership, the collaboration, and just the consistent support Alan has provided. He stepped in a couple of times where we really needed a board member to support listening sessions and other things and just incredibly grateful to his service and I agree I will be continuing to talk with him on a regular basis. I also want to thank the library. The opportunity to use this facility and talk about education in a place of learning is incredible. They have been open doors for us on multiple occasions and continue to support,

[03:58:28] but I also want to thank the team that brought us to the library and has moved around consistently and set us up, whether it's our tech folks, our board team back there, our support staff, our OAG, they are constantly moving and shaking to make sure that it looks like the same meeting as last month, even in different places.

[03:58:47] So I really greatly appreciate all of the support staff that helps us every day. want to give a huge shout out to our security staff that make sure that we are in a good place and have a great meeting. So thankful to them. Ms. Holton, you stole my thunder a little bit.

[03:59:04] We really appreciate our student voice. We had a phenomenal student presentation. I'm very proud that we've incorporated as a board student performances as part of grounding our work and our conversation. It is essential for us to have the opportunity to see students regularly and see their performances and have that space.

[03:59:25] So I'm incredibly grateful for those students. I'm incredibly grateful for Rainia and her advocacy of Unified PE. Her superintendent reached out to me earlier this week and thanks to us as well. We are really excited that we'll be bringing a board item for a substitution around Unified PE.

[03:59:44] And that is based on her leadership and her student voice that she has used so beautifully. Also want to thank the team who has worked on the performance and support framework they have traveled the state they have held over 20 25 listening sessions with open public comment they've taken the time to categorize that comment bring that back to the board tally it analyze it and put it in front of us i appreciate the way they respond to comments the immediate misconceptions that they clean up when there are comments so i'm incredibly grateful for the work they've done and i want to thank chad and

[04:00:22] and they have been with us for 14-18 months through this entire process. This is not their day job, so incredibly appreciate the time and commitment they're providing to doing that. And really want to reiterate that, Dr. Bryce, you said this earlier, a lot of the data has been on 2023 data at the all-time low in performance and want to thank our educators for working so hard at the call to action from All In. Last but not least, I really want to thank the governor.

[04:00:55] We have been talking about cell phone free education and mental health crises and really leaning into that as an agency. You saw some of that in the computer science standards in June around screen time and defining screen time and we're grateful that Germana is helping us do teacher training on screen time but the governor's executive order 33 really makes a call to action around a mental health crisis that is happening with our children and it's causing a great distraction in our classrooms and i just want to call to light some of the statistics that since

[04:01:33] 2010 when our students started having great deal of access to smartphones and more modern social media, 139 percent increase in anxiety. When we look at self-harm reports in emergency room hospitals, 168 percent increase in our adolescent girls and 48 percent increase in our adolescent boys of reported self-harm in emergency rooms. There are statistics around depression. There

[04:02:07] are a lot of statistics around that that span the globe and when different parts of the globe really integrated smart media, smart social media and smartphones. But the most startling statistic that I just want to make sure the board is aware of is that since this time, suicide rates, not suicide attempts, suicide rates have increased 167% for our young women and 91% for our young men. We know based on statistics that our middle school students are spending five

[04:02:43] hours and our high school students are spending on average seven hours, not a week, a day on social media. That is more than a full-time job. And most of those students are starting to show signs and self-report signs of addiction. We have to take a stand on that situation with our children, but we We also know that our teachers and our educators are wanting to focus on classroom work and wanting to focus on instruction.

[04:03:13] And through the two listening sessions we've had and other conversations we've had with school leaders, they repeatedly tell us how hard it is to deliver instruction in a classroom that is distracted by cell phones. So we are on a journey of listening over the next several weeks.

[04:03:28] I think Todd reminds me regularly that we have five next week and a few more the following week and we will be really working to get deep input deep stakeholder voice and collaboration not just on that guidance but on the challenges that our educators are facing and how we continue to be shoulder and shoulder in this work because it is a responsibility for us to support our students to focus on instruction have high quality learning experiences give our teachers places where they can teach and make sure our families are aware of the critical challenges that cell phones and social media are providing in the mental health of our young people. So I'm incredibly proud

[04:04:08] to be a part of this. We are happy to give the board updates as we learn more, as we move through the guidance process and implementing Executive Order 33. I do want to call out the amazing website that has those listening sessions available. All you have to do is go to the VDOE website. There's a large banner on cell phone free education all of the listening sessions are posted an opportunity to provide public comment as we are drafting that guidance the guidance will the draft guidance will be placed on the website on August 15th we encourage you then to give us a very specific

[04:04:43] feedback on the guidance on September 15th that guidance becomes final and school divisions and school boards have the opportunity to implement that and make sure they're meeting the necessary components of that guidance so if they already have a policy they should review their policy and make sure their policy is in line with that guidance but the department then goes to work to really support our school divisions on that website we will incorporate handouts best practices action toolkits and resources that we are currently calling from across the state so want to make sure the board is aware of that work and the importance of that work

[04:05:21] and the crisis that our young people are facing around their cell phones and make sure that we are all arm and arm together to make sure our children can have great learning opportunities and help our families address some of the mental health needs that our children are facing. Thank you very much. Okay, anyone else? Oh, I'm sorry, Dr. Northern. I was just going to say I actually wrote a blog post about

this today and I'm happy to send it around. I actually got the honor of attending a very good session about how to handle cell phones in schools. And anyway, I learned a

[04:06:01] lot. And so anyway, if the extent that it's helpful to any of this work, I'm happy to send it around. But I agree, it's a crisis. Okay. If there's nothing further, I'd entertain a motion to adjourn.

[04:06:16] All in favor? And we are adjourned.

